# Independent Contractor Agreement Package

Aari Realty LLC · Licensed Real Estate Brokerage

Dated October 13, 2026

**Effective on the date the Associate signs the ICA dated October 13, 2026 online**

## INCORPORATED DOCUMENTS

| Incorporated Document | Reference |
|---|---|
| **Independent Contractor Agreement (ICA)** | Full document |
| **Commission Structure Addendum (CSA)** | Full document |
| **Exhibit A: Commission Fee Schedule** | Full document |
| **Operations & Compliance Manual** | Full document |
| **Fair Housing Policy** | §56 |
| **Advertising Policy** | §57 |
| **Social Media Policy** | §58 |
| **Errors & Omissions Addendum** | §60 |
| **Record Retention & Confidentiality** | §61 |
| **Recruiting Reward Policy** | §62 |
| **Indemnification & Defense Addendum** | §72 |
| **Acknowledgments** | §86 through §91 |
| **Confirmation of Communication** | §92 |

**NOTICE & AMENDMENT:** Written notice is delivered by any method set forth in Section 18. Unless a different effective date is stated, amendments take effect immediately upon notice. Continued affiliation after the effective date constitutes acceptance of all updated or newly incorporated documents.

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## INDEPENDENT CONTRACTOR AGREEMENT

### DEF. DEFINITIONS

**"Agreement" or "ICA"**: This Independent Contractor Agreement, including all Incorporated Documents.

**"Associate"**: The real estate licensee who executes this Agreement.

**"Broker"**: The licensed Florida real estate broker of record of the Company, acting on behalf of the Company.

**"Company"**: Aari Realty LLC, a Florida limited liability company.

**"Business Day"**: Any day other than Saturday, Sunday, or a federal holiday observed by the Company.

**"Onboarding Anniversary"**: Each yearly anniversary of the Associate's Start Date for the Associate's current affiliation with the Company. For an Associate already affiliated with the Company when signing the ICA dated October 13, 2026, each yearly anniversary of the date the Associate first affiliated with the Company.

**"Incorporated Documents"**: All documents referenced in Section 18 and incorporated by reference into this Agreement, including the Commission Structure Addendum, Exhibit A: Commission Fee Schedule, Operations & Compliance Manual, the Acknowledgments in Sections 86 through 91, and all policies and addenda.

**"Notice"**: Written communication delivered by any method set forth in Section 18. Notice is deemed delivered immediately upon sending or posting.

**"Written" or "Writing"**: Includes email, electronic communications, digitally executed documents, and physical documents bearing original or electronic signatures.

**"Immediately"** means without delay and, where a specific deadline is stated in Section 85 of the Operations and Compliance Manual, within that deadline. No general or default reporting period applies in place of a Section 85 deadline.

### §1. Independent Contractor Relationship

The Associate is engaged as an independent contractor, not an employee. The Company will not withhold taxes, provide employee benefits, or control the Associate's daily work schedule. The Associate is solely responsible for tax filings, business expenses, professional tools, transportation, maintaining required insurance, and the Associate's own MLS, board and association dues. The Associate must complete a W-9 form and will receive a Form 1099-NEC when federal law requires one.

Broker retains authority to direct compliance with legal and regulatory obligations under Florida Statute Chapter 475 and FREC rules, without altering the Associate's independent contractor status.

#### No Authority to Bind

Except as expressly authorized in Section 55 (Broker Execution & Review), the Associate has no authority to bind the Company, enter contracts, or incur obligations on the Company's behalf. Section 55 sets out the limited categories of documents an Associate may execute on behalf of the Company, the required signature format, and the categories that require Broker execution. Authority beyond those categories requires a specific written authorization executed by the Broker for the transaction in question, which may be granted or withheld in the Broker's sole discretion. The Associate remains personally liable for any commitment made outside the scope of Section 55 or a written authorization.

### §2. Exclusive Brokerage Affiliation

As of the date the Associate becomes Active, the Associate is not licensed with, registered under, or actively affiliated with any other real estate brokerage. Until that date the Associate may remain registered with the prior broker and conducts no real estate activity for the Company. Florida law permits a sales associate to be registered under only one broker at a time.

For purposes of this Section, "brokerage activity" means any act that requires a Florida real estate license under Chapter 475, Florida Statutes, including listing, selling, buying, leasing, auctioning, exchanging, or negotiating the sale, purchase, or lease of real property for another and for compensation, and any equivalent act requiring a real estate license in another jurisdiction.

Brokerage activity does not include: (a) transactions in which the Associate, the Associate's spouse, or an entity the Associate controls (as described in Section 28 of the CSA) is a principal and no compensation is earned for representing another party; (b) ownership, management, or investment in real property the Associate owns, subject to Section 80; (c) holding a license or registration in another regulated field, including mortgage, insurance, title, appraisal, or property management, provided the Associate does not perform real estate brokerage activity under it; or (d) employment or contracting in a role that does not require a real estate license.

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Limited outside affiliations, including referral only licenses or registrations in other states, require prior written approval from the Broker. The Associate must request approval in writing before affiliating, and the Broker shall respond in writing within ten (10) business days. Silence does not constitute approval.

Engaging in unapproved brokerage activity constitutes grounds for immediate termination for cause. The Company may withhold pending commission disbursements while it determines whether the activity caused loss to the Company, and may offset any documented actual loss, including regulatory fines, claim costs, and legal fees, against amounts otherwise payable. Any amount withheld and not applied to a documented loss shall be released to the Associate within thirty (30) days of the Company's written determination, and in any event within ninety (90) days of the initial withholding unless the Broker provides written notice before that date stating the specific reason the withholding must continue.

## §3. Associate Responsibilities

The Associate shall:

### Licensure

Maintain an active Florida real estate license at all times and remain in compliance with continuing education and renewal requirements.

### Compliance with Laws and Rules

Comply with all applicable Florida Statutes, FREC Rules, MLS Rules, the NAR Code of Ethics, and all Company policies.

Laws, administrative rules, MLS rules, and industry practice standards change. The Associate's obligation is to comply with each requirement as it exists at the time of the transaction, not as it may be described in this Agreement or any Incorporated Document. Where a requirement referenced in this Agreement is amended, superseded, stayed, vacated, or repealed, the current requirement governs and this Agreement is read accordingly. Compliance guidance is provided by the Broker in writing. Lack of awareness of a change is not a defense to a violation.

### Association and MLS Membership

Join, and remain a member in good standing of, a REALTOR® association and an MLS in which the Company holds membership, within the time and on the terms that association and that MLS set in their own bylaws and rules, as amended. Where the Associate works in more than one market, this applies to each association and MLS through which the Associate does business. Association and MLS dues and fees are the Associate's own cost and are paid directly to the association and the MLS. The Associate shall follow the bylaws, rules, and Code of Ethics of each association and MLS of which the Associate is a member.

An Associate who has not joined, or does not keep, that membership as the association and MLS rules require may not list, show, or negotiate the sale, purchase, or lease of real property under the Company. The Broker may learn of a missing or lapsed membership from the association or the MLS, or by checking the association or MLS records directly. When the Broker determines that the Associate is not a member as those rules require, the Broker may, at the Broker's sole discretion, either keep the Associate with the Company while the Associate completes membership, or move the Associate's license to Aari Referrals LLC, a separately licensed affiliated brokerage that conducts referral activity only and does not require association or MLS membership. By signing this Agreement, the Associate (i) authorizes that move, (ii) accepts the Aari Referrals LLC Referral Associate Agreement as published at aaritransactions.com/referral-associate-agreement.html on the date of the move, with no signature required, and (iii) agrees to complete without delay any step the Department of Business and Professional Regulation requires to record the change of employing broker. The Company's system confirms the move to the Associate's email on file, which is notice under Section 92. The license remains with the Company until the change is recorded with the Department. A move to Aari Referrals LLC under this paragraph is not subject to the notice period payment in Section 12 or the Short Notice Fee in Exhibit A. If the move cannot be completed, this Agreement may be terminated under Section 12. Transactions pending on the date the license leaves the Company are handled under Section 13.

### Incorporated Documents

Abide by all documents incorporated by reference, including but not limited to the Commission Structure Addendum, Exhibit A: Commission Fee Schedule, Operations & Compliance Manual, and all other written policies issued by the Company.

### Deadlines & Technology Protocols

Follow all compliance deadlines, document submission requirements, and technology protocols as directed by the Company.

### Cybersecurity & Data Breach Reporting

Report any suspected or actual data breach in accordance with the reporting deadlines in Section 85 of the Operations and Compliance Manual.

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**Data Breach Liability**

If an Associate's negligence, willful misconduct, or violation of Company cybersecurity protocols causes or contributes to a data breach, the Associate shall be liable for resulting damages, provided that Associate liability shall not apply to losses caused by: (i) third party breaches beyond the Associate's reasonable control; (ii) failures in Company provided technology infrastructure; (iii) acts or omissions of Company employees, officers, or agents; or (iv) events occurring after the Associate has complied with all applicable data breach reporting requirements.

**Client Funds and Escrow**

Aari Realty LLC maintains no escrow or trust account. The Associate must never accept, receive, hold, transport, deposit, endorse, or take possession of any client funds in any form, including earnest money, rent, security deposits, option fees, cash, checks, money orders, wires, or electronic payments. All funds move directly from the client to the escrow agent, title company, or closing attorney designated in the contract. Violation is a Material Breach and may result in immediate termination and reporting to DBPR. The complete requirements, including written verification deadlines and the performance hold, are set forth in Section 76.

**Federal Reporting Designations**

The Associate has no authority to accept, sign, initial, or agree to any designation agreement, reporting assignment, or written arrangement that places a federal reporting obligation on Aari Realty LLC or on the Associate. Requests of this kind commonly come from title companies, closing agents, or attorneys at or near closing. Any such request must be forwarded to the Broker unanswered. Unauthorized acceptance is a Material Breach. The complete requirements are set forth in Section 77.

**Wire Safety**

Associates must not transmit wire transfer instructions via email or text. All wire instructions must be verbally confirmed by the client directly with the title company. Any violation constitutes an immediate termination event and may result in withheld commissions and disciplinary action.

**MLS Compliance**

The Associate must comply with the listing submission, cooperation, and public marketing rules of each MLS in which the Associate participates, as those rules exist at the time of the transaction. The applicable MLS defines what constitutes public marketing, what triggers the submission obligation, and the deadline that applies. Those definitions and deadlines vary by board and are published by each board. The Associate is responsible for knowing and following the current rule of every board in which the Associate participates.

Where a seller directs that a property not be submitted to or publicly marketed through an MLS, the Associate must satisfy that MLS's own requirements for the election before any advertising of the property occurs. Some boards require a signed owner agreement or written notice to be filed with the board itself, and a document held only in the Company's file does not satisfy that requirement. The Associate must complete the board's process and upload proof of the board filing, together with the seller's written instruction, to the compliance platform.

Any change to the listed price or to any other term of the listing agreement requires written seller authorization before the change is made. The Associate must then update the MLS within the deadline set by the applicable board, and must ensure the price published in the MLS matches the price stated in the current listing agreement or modification at all times. Where a modification is intended to take effect on a future date, that effective date must be stated in the modification itself.

**Company file completion (not an MLS deadline):** Listing agreement upload to the Company's compliance platform is governed by Section 65.

**Broker notice:** any MLS inquiry, citation, fine, complaint, or disciplinary communication must be reported to the Broker within twenty four (24) hours.

**Fine responsibility:** any fine, penalty, or sanction imposed by any MLS as a result of the Associate's violation is the Associate's sole financial responsibility, and the Company may offset amounts it pays on the Associate's behalf against future commission disbursements. Offsets under this Section are subject to the caps, notice requirements, and release deadlines stated in Section 7, Section 10, and Section 72, as applicable to the underlying obligation.

**Social Media & Advertising**

Any advertising or marketing that uses the Company's name, branding, or implies affiliation requires prior written Broker approval, except where Associates use precleared Company templates.

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**TCPA Compliance**

Associates must comply with all federal and state laws governing telemarketing, text messaging, and electronic communications, including maintaining documentation of client consent, as further governed by Section 84 of the Operations and Compliance Manual.

**Auto Insurance**

Insurance and safety requirements, including the auto insurance every Associate must carry, are defined in the Operations & Compliance Manual.

**Transaction Coordination**

File organization and transaction coordination services are provided through Aari Transactions LLC, an affiliated entity. Transaction coordination is mandatory while the Associate is on the Mentorship Path under Section 38.1 and optional thereafter. The purpose of this requirement is regulatory compliance, file accuracy, risk management, and proper supervision during the Associate's first transactions. The fee is set by Aari Transactions LLC as stated in Exhibit A, Section 38.4. The Associate bears the cost and the client is not charged for transaction coordination.

## §4. Fair Housing Compliance

The Associate must comply with the Federal Fair Housing Act, the Florida Fair Housing Act (Chapter 760, Florida Statutes), the Americans with Disabilities Act, and all applicable local fair housing ordinances, as those laws exist at the time of the conduct.

This obligation applies to every form of communication in which the Associate engages in connection with real estate services, including MLS remarks and listing content, advertising and marketing in any medium, websites and social media, written and verbal communications with clients, customers, and cooperating licensees, and the manner in which the Associate describes properties, neighborhoods, schools, demographics, or safety.

MLS remarks and advertising copy are the most common source of fair housing violations, and both are distributed to the public automatically. The Company may correct, modify, or remove any listing content, advertisement, or marketing material that in the Broker's determination presents a fair housing risk, without prior authorization from the Associate, and will notify the Associate when it does so.

The Associate must complete fair housing training and submit proof to the Broker within fourteen (14) days of affiliation, and may not accept client representation until proof is submitted. Training offered by the National Association of REALTORS, Florida Realtors, a local REALTOR association, or a Florida approved continuing education provider satisfies this requirement. The Broker may designate a specific provider in writing, in which case the Associate must use it. The complete Fair Housing Policy, including the list of prohibited conduct, is set forth in Section 56.

Violation may result in immediate termination and reporting to FREC and the U.S. Department of Housing and Urban Development.

## §4A. Antitrust Compliance

Commissions, fees, and compensation charged to clients are negotiable and are not fixed, controlled, recommended, or mandated by the Company. The amount or rate of compensation is determined solely through negotiation between the Associate and the client. Nothing in this Agreement, any Incorporated Document, or any Company meeting, training, or communication requires the Associate to charge any specific rate, minimum fee, or pricing structure. The Associate must independently determine compensation terms in each transaction and must avoid any discussion or conduct that could be construed as price fixing, market allocation, or other anticompetitive behavior. This paragraph does not apply to the Company's transaction fee, which is charged to a client only as permitted, and limited only as stated, in Exhibit A: Commission Fee Schedule. Client agreements are made with the Company, so the Broker may reduce or waive a fee owed under them before it is collected, as stated in Exhibit A: Commission Fee Schedule.

The Associate must not:

(a) discuss with licensees affiliated with any other brokerage the commission rates or fees the Company or any other brokerage charges, or the business practices of any other brokerage, except to negotiate compensation or a referral fee on a specific transaction as Section 55 of the Operations & Compliance Manual allows;

(b) reference a prevailing, standard, customary, or typical commission rate to any client or third party;

(c) agree with any competitor to refuse to show, cooperate with, or compensate any brokerage based on that brokerage's business model or fee structure.

Any inquiry from a competitor regarding Company rates or practices must be reported to the Broker.

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## §5. Confidentiality

### Definition of Confidential Information

"Confidential Information" includes all nonpublic information belonging to the Company or its clients, whether disclosed in written, oral, electronic, or digital form, including client lists, leads, pricing strategies, commission structures, proprietary training materials, business plans, Company records, technology systems, and compliance protocols.

### Use Restriction

The Associate shall use Confidential Information solely to complete transactions on behalf of clients procured through the Company and to perform the Associate's obligations under this Agreement. Any other use requires the Company's prior written consent. Confidential Information may not be copied, retained, disclosed, or used for personal gain or for the benefit of any other brokerage, competitor, or third party without the Company's prior written consent.

### Post Termination Restrictions

Upon termination, the Associate must: (a) immediately cease use of Company Generated Leads as defined in Section 9, all Company lead sources, and all proprietary systems; and (b) continue to maintain confidentiality of trade secrets, pricing structures, business strategies, and nonpublic Company information.

Company property return deadlines are set forth in Section 13.

This Section does not restrict the Associate's use of contact information and transaction history for Personally Generated Clients as defined in Section 9. The Associate may retain and use that information to continue serving those clients, provided the information is not disclosed to any other brokerage or competitor and is not used to solicit any client the Associate did not personally generate.

### Enforcement Rights

Unauthorized use or disclosure of Confidential Information constitutes a Material Breach and entitles the Company to immediate injunctive relief, recovery of damages, and any other remedies available under law or equity. In any action to enforce this Section, whether brought by the Company or the Associate, the prevailing party is entitled to recover reasonable attorneys' fees and costs.

### Survival

Confidentiality obligations survive termination indefinitely as to trade secrets, client data, proprietary business information, and any information protected under applicable state or federal law.

## §6. Errors & Omissions (E&O) Insurance

The Company maintains an Errors & Omissions policy covering professional services. The Associate is covered under the Company's policy for the E&O + Compliance Fee set forth in Exhibit A, and agrees to pay the retention or deductible attributable to the Associate's conduct. The Associate's obligation for any single covered matter shall not exceed the retention or deductible amount stated in the Company's policy declarations in effect on the date the claim is first made against the Company. Where more than one Associate's conduct contributes to a claim, the retention shall be allocated proportionally based on each party's degree of fault as reasonably determined by the Broker, or as determined by the carrier or legal counsel. The Company shall offer the Associate a written payment plan option of not less than ninety (90) days for any amount exceeding the payment plan threshold set forth in Exhibit A, unless the Associate requests immediate payment or a shorter period, or the underlying conduct involves fraud, conversion, or criminal conduct. Offsets under this Section are subject to the caps, notice requirements, and release deadlines stated in Section 7, Section 10, and Section 72, as applicable to the underlying obligation.

Associates must report potential claims immediately (meaning within twenty four (24) hours of receipt or discovery), including demand letters, threats of claims, or service of process.

## §7. Compensation

### Commission Basis

The Associate shall be compensated solely through commissions in accordance with the Commission Structure Addendum ("CSA"), as amended from time to time. The CSA governs commission calculation, application order, offsets, and disbursement mechanics, while Exhibit A: Commission Fee Schedule governs commission plans, splits, fees, pricing, thresholds, and billing schedules.

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**Conditions Precedent to Payment**

A commission is earned when the conditions stated in the Commission Structure Addendum, Section 23, are satisfied. Those conditions govern and this Agreement does not restate them. Once earned, a commission is payable to the Associate subject to completion of Company compliance review, the Associate's Good Standing, satisfaction of financial obligations owed to the Company, and application of applicable offsets under this Section. Once a commission is earned under Section 23 of the Commission Structure Addendum, a later loss of Good Standing affects when it is paid, not whether it was earned. A commission earned before the Associate falls out of Good Standing remains owed and is released when Good Standing is restored, subject to any offset the Company is otherwise entitled to apply.

**Commission Timing**

Commission is disbursed to the Associate within three (3) to five (5) business days after all Conditions Precedent to Payment stated above are satisfied, including receipt of cleared funds. The five business day period begins on the date the last of those conditions is satisfied. Where the Associate has elected split disbursement under §67.2 and all conditions are met, the Associate's share is disbursed by the settlement agent at closing and this timing provision applies only to any remaining amount payable by the Company.

The Broker may extend disbursement beyond five business days by written notice to the Associate stating the reason. An extension under this provision shall not exceed ten (10) business days unless the delay arises from a compliance issue, a dispute, or an offset that the Broker identifies in the notice, in which case the extension continues until that matter is resolved. Notice of extension does not constitute a breach of this Agreement.

**Late Files and Abandoned Commissions**

Associate must submit the documents the Broker needs to issue the Commission Disbursement Authorization by the deadline in Section 50 of the Operations & Compliance Manual, and the final closing documents within forty eight (48) calendar hours after the closing date shown on the settlement statement. A transaction for which those documents are not submitted by these deadlines, or which is not completed within the period in Section 69.2 of the Operations & Compliance Manual, or which otherwise meets the definition of Late File in Section 45 of the Operations & Compliance Manual, is a Late File and is subject to the file completion fees and the Final Deadline set forth in Exhibit A.

**Post Termination Commissions**

Commissions are payable only on transactions supported by a fully executed purchase and sale agreement dated before termination or inactivation, and remain subject to file completion, Broker approval, cleared funds, and offsets. This provision is subject to the Departure Share and its exclusion for transactions originating from Company Generated Leads.

**Departure Share**

For transactions with fully executed purchase and sale agreements dated before termination where the Associate performed the material duties of the transaction prior to termination, meaning the Associate secured the executed purchase and sale agreement and remained the representing licensee of record through the date of termination, the Company shall disburse the Associate's Departure Share set forth in Exhibit A, Section 39.4, within thirty (30) days of closing, provided that: (i) the Associate submits available transaction documents within ten (10) business days of the Company's written request; (ii) the Associate, within five (5) business days of the Broker's written request, responds in writing and provides the specific transaction documents, platform access, client contact information, or vendor contact information identified in that request, and signs and returns any Commission Disbursement Authorization or offset consent the Broker submits within five (5) business days of receipt; and (iii) no fraud, conversion, or Material Breach directly related to that transaction has occurred. This Departure Share is controlling for post departure compensation on transactions originating from Personally Generated Clients as defined in Section 9, and supersedes any contrary statement of Broker discretion elsewhere in this Agreement or any Incorporated Document as to those transactions. The Departure Share does not apply to transactions originating from a Company Generated Lead as defined in Section 9. Where an Associate terminates or is terminated before closing of a transaction originating from a Company Generated Lead, the Associate has no right, title, or interest in any pending or future commission derived from that transaction unless the Broker agrees otherwise in writing. Lead classification for this purpose is determined under Section 9 and is subject to the appeal process stated there.

**Good Standing**

Good Standing means the Associate satisfies all of the following: (a) maintains a current, active Florida real estate license in good standing with DBPR; (b) has no outstanding fees, balances, or debts owed to the Company; (c) has no material policy violations or unresolved compliance issues; (d) has paid the current E&O + Compliance Fee and maintains a current certificate of the auto insurance required by Section 60 of the Operations & Compliance Manual, naming the Company as Section 60 requires; (e) complies with all document submission deadlines and file completion requirements; and (f) is not subject to any active suspension, investigation, or disciplinary action.

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### Personal Transactions

A Personal Transaction, as defined in Section 28 of the CSA and determined at the time the transaction contract is executed, is permitted only with prior Broker approval and is subject to the applicable transaction fees and compliance requirements set forth in Exhibit A: Commission Fee Schedule.

Personal Transactions are excluded from the Company's Errors & Omissions coverage. The Associate is solely responsible for any resulting liability and is strongly encouraged to obtain individual coverage before proceeding.

### Fees

All Company fees, pricing, commission schedules, transaction fees, compliance fees, administrative charges, and billing timing are governed exclusively by Exhibit A: Commission Fee Schedule.

### Overpayments & Deductions

Any overpayment must be repaid within five (5) business days of notice. The Associate authorizes the Company to deduct unpaid balances, overpayments, fees, fines, or obligations from any commission disbursement, provided that: (i) offsets shall not exceed fifty percent (50%) of any single commission disbursement without the Associate's prior written consent, except where the underlying obligation relates to that specific transaction; (ii) the Company shall provide written notice of any offset at least three (3) business days before disbursement; and (iii) for offsets exceeding fifty percent (50%), the Company shall offer a written payment plan option of not less than ninety (90) days. The limits, notice, and payment plan in this paragraph do not apply to the Final Deadline retention set forth in Exhibit A: Commission Fee Schedule.

## §8. Transaction Compliance

The Associate must comply with all requirements set forth in the Operations & Compliance Manual, including the transaction documentation and file submission requirements in §50 and §51. All documents must be submitted in the compliance platform by the deadlines specified. Failure to comply may result in withheld commissions, suspension, or termination. Where commissions are withheld under this Section, the Company may offset documented actual losses arising from the noncompliance and shall release any remaining amount within thirty (30) days of the Associate curing the deficiency. Fees and retention applicable to incomplete files, including the file completion fees and the Final Deadline for files that remain incomplete after closing, are set forth in Exhibit A. Whether a commission is earned is governed by Section 23 of the Commission Structure Addendum. Once a commission is earned, later noncompliance affects when it is released for payment, not whether it was earned.

## §9. Client Ownership

### Personally Generated Clients

A client is a Personally Generated Client where the Associate originated the relationship through the Associate's own marketing, prospecting, sphere of influence, past client relationships, or personal referrals, without use of any Company Generated Lead, Company advertising, Company lead source, or Company funded marketing. Personally Generated Clients remain the Associate's property, subject at all times to this Agreement, the Commission Structure Addendum, and Company policies.

A relationship that predated the Associate's affiliation with the Company qualifies as personally generated only if the Associate disclosed and documented it with the Broker in writing at the time of affiliation or within ten (10) business days of affiliation. A relationship originated after affiliation qualifies without a disclosure deadline, provided the Associate can demonstrate the source on request.

### Company Generated Leads

A Company Generated Lead is any prospect, buyer, seller, landlord, or tenant generated, provided, routed, assigned, or funded by the Company, including leads from Company advertising, Company purchased lead programs, Company websites, Company social media, Company phone numbers, walk ins, open houses on Company listings, relocation programs, referral partnerships, and any other Company funded lead source. Company Generated Leads are Company property and are assets generated through Company investment, marketing expenditure, and infrastructure.

A lead from any source, including a third party referral network, social media, or paid advertising, is a Company Generated Lead when Company staff first receive, answer, or schedule it before the Broker assigns it to an Associate. A lead that a third party referral network sends directly to an Associate, without Company staff handling it first, is governed by Section 36.

The Broker determines lead classification based on source documentation, timestamp of first contact, and inquiry method. The Broker shall identify a lead as a Company Generated Lead in writing at the time the lead is assigned to the Associate. A lead not identified in writing as Company Generated at the time of assignment is presumed to be a Personally Generated Client for purposes of the

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Departure Share in Section 7. The Broker may rebut the presumption only by producing source documentation predating the assignment that establishes the lead's Company Generated origin; the Associate may respond and pursue the appeal process in the Lead Classification Appeal Process paragraph and, if the Broker's determination is adverse, may pursue a claim under Section 15. Leads assigned to an Associate before the effective date of this provision are classified under the rule in effect at the time of assignment. This Section applies to leads assigned on or after that date. Compensation on Company Generated Leads is governed by the Commission Structure Addendum and Exhibit A.

**Lead Classification Appeal Process**

If an Associate disputes a lead classification determination, they may submit a written appeal to the Broker within thirty (30) calendar days, including all supporting documentation. The Broker shall issue a written response within a reasonable time after receiving the appeal. The Broker's written determination after review of the appeal is final for internal administrative purposes and is not subject to further internal review. Nothing in this Section waives the Associate's right to pursue a claim under Section 15.

## §10. Referral & Co Agent Commission Disputes

Reporting obligations for claims, demands, complaints, investigations, and proceedings, including those involving a commission, are set forth in Sections 60, 65, and 72, and the deadlines for each are stated in the master reporting schedule in Section 85 of the Operations and Compliance Manual.

The Company is not responsible for resolving referral or co agent disputes unless: (i) the agreement is in writing, (ii) signed by all parties, and (iii) approved by the Broker. Disputes must be resolved pursuant to MLS and NAR arbitration rules. Where a third party asserts a claim to any portion of a commission, the Company may withhold the amount actually in dispute pending resolution. The undisputed portion is disbursed to the Associate in the ordinary course under Section 67. The Company shall notify the Associate in writing within five (5) business days of initiating a withholding under this Section, stating the amount withheld, the party asserting the claim, and the basis for the claim. Where no arbitration, mediation, or legal proceeding has been initiated within ninety (90) days of the withholding, the withheld amount is released to the Associate unless the Broker provides written notice before that date stating the specific reason the withholding must continue and the expected resolution timeframe. Where the amount withheld exceeds fifty percent (50%) of the total commission and no arbitration, mediation, or legal proceeding has been filed, the Company shall provide the Associate with a written statement of the basis for the amount withheld within five (5) business days of the withholding.

Decision to Pursue or Defend. The Broker decides whether the Company pursues or defends any procuring cause claim, arbitration, mediation, or legal action involving a commission, and that decision rests in the Broker's sole discretion. The Associate may not initiate, file, or respond to any such proceeding on the Company's behalf.

Where the Associate requests that the Company pursue a claim and the Broker declines, the Associate may request in writing that the Company pursue it at the Associate's expense. If the Broker consents, the Associate is responsible for all arbitration fees, filing fees, legal fees, expert fees, and related costs, regardless of outcome, and any recovery is disbursed to the Associate after deduction of those costs, the Company's transaction fee, and any amount the Company would otherwise be entitled to under the Associate's commission plan. Consent may be granted or withheld in the Broker's sole discretion, and the Broker may condition consent on the Associate depositing estimated costs in advance.

Where the Company pursues or defends a claim on its own decision, the allocation of internal administrative time and outside legal costs is covered by the Collection Share under Section 46 and Exhibit A, Section 42.1.

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## §11. Indemnification

The Associate agrees to indemnify, defend, and hold the Company harmless from claims, damages, losses, liabilities, fines, penalties, and costs arising out of the Associate's acts, omissions, negligence, misrepresentation, or misconduct in the performance of real estate services; the Associate's failure to comply with applicable law, FREC rules, MLS rules, or Company policies; unauthorized promises or agreements the Associate makes to clients, cooperating brokers, or third parties; and disputes or penalties arising from incomplete, inaccurate, or untimely documentation.

This obligation does not extend to claims arising solely from the Company's own negligence or willful misconduct.

The Company or its E&O carrier controls the defense and selection of counsel for any covered matter. The Associate must notify the Broker in writing within twenty four (24) hours of any demand, complaint, investigation, or threatened claim and must cooperate fully in the investigation and defense.

The Company may withhold commissions to cover a claim, subject to the cap, the written documentation requirement, and the release deadlines stated in Section 72. This obligation survives termination.

The complete indemnification, defense, and offset terms are set forth in Section 72, which controls.

## §12. Term & Termination

### Term

This Agreement begins on the Effective Date and continues until terminated by either party under this Section. There is no minimum term and no renewal requirement. Recurring fees are billed as set forth in Exhibit A and Section 68 of the Operations and Compliance Manual.

### Termination At Will

Either party may terminate this Agreement at any time, with or without cause, upon written notice. Termination by the Company is effective immediately upon delivery of written notice. Termination by the Associate is effective thirty (30) days after the Company receives the Associate's written notice, or on an earlier date the Broker accepts in writing, and recurring fees continue through the effective date. Nothing in this Section limits the Associate's right to transfer the Associate's license at any time. If the Associate transfers the license or otherwise ends affiliation without giving thirty (30) days' written notice, the affiliation ends on that date, and the Associate owes one additional Monthly Brokerage Fee in place of the notice period, plus the Short Notice Fee set forth in Exhibit A: Commission Fee Schedule. Termination shall not affect the Company's right to collect any earned but unpaid fees, commissions, transaction charges, or other amounts due under this Agreement. All provisions relating to compensation, file retention, compliance, confidentiality, recordkeeping, and any obligations that by their nature are intended to survive termination shall survive termination of this Agreement.

## §13. Post Termination Obligations

Upon termination of this Agreement, the Associate must: cease all use of Company logos, branding, templates, and platforms; complete all outstanding compliance file requirements; reconcile commissions in accordance with the CSA; and update all online profiles within five (5) calendar days to remove Company affiliation.

Upon termination the Associate must return Company property on the following schedule:

(a) Within twenty four (24) hours: all access credentials and passwords, lockbox and Supra eKey access, and all physical keys, access codes, and entry devices for any property listed with or managed by the Company.

(b) Within three (3) business days: all signage, marketing materials, printed inventory, business cards, and all other physical Company property.

(c) Within five (5) business days: written certification that all electronic Company materials, including client data, transaction files, and contact records, have been deleted from all personal devices, cloud storage, and email accounts, excluding materials the Associate is required by law to retain and contact information and transaction history for Personally Generated Clients that the Associate may retain under Section 5.

File completion obligations remain governed by Section 69.2 of the Operations and Compliance Manual.

ASSOCIATE INITIALS _____

### Client Ownership After Termination

The Associate may continue working only with clients they personally generated, provided they remain in compliance with this Agreement, the CSA, and post termination obligations. The Associate has no rights to Company Generated Leads, referrals, relocation clients, or advertising sourced prospects after termination. Any attempt to divert or solicit Company Generated Leads post termination constitutes a Material Breach.

### Compensation After Termination

Commissions on transactions supported by a fully executed purchase and sale agreement dated before termination remain payable subject to file completion, Broker approval, cleared funds, and offsets. Where the transaction originated from a Personally Generated Client as defined in Section 9, the Associate is paid the Departure Share in Section 7, subject to the conditions stated there. The Departure Share does not apply to transactions originating from a Company Generated Lead as defined in Section 9. The complete terms are set forth in Section 7, which controls.

### Survival

All confidentiality, indemnification, nonsolicitation, payment, and post termination commission obligations expressly set forth in this Agreement and the CSA shall survive termination and remain enforceable.

## §14. NonSolicitation

During affiliation and for twelve (12) months after termination, the Associate shall not directly or indirectly solicit or recruit Aari Realty Associates, staff, or contractors to leave the Company. For purposes of this section, “solicitation” means any direct, targeted outreach to a specific individual for the purpose of inducing them to terminate or reduce their affiliation with the Company. General public advertising that is not targeted at specific Company Associates does not constitute solicitation.

For twelve (12) months after termination, the Associate shall not directly or indirectly solicit, contact for the purpose of soliciting, or accept real estate business from any client, customer, or prospect that came to the Associate as a Company Generated Lead as defined in Section 9, except where the Broker consents in writing. This restriction does not apply to Personally Generated Clients as defined in Section 9, which the Associate may continue to serve without limitation. This restriction does not prohibit general public advertising that is not targeted at specific individuals, and does not prohibit the Associate from responding to an unsolicited contact initiated by the client, provided the Associate did not directly or indirectly induce that contact. Compensation rights during any contractual protection period are separately governed by Section 73.

## §15. Dispute Resolution

### Written Notice Required First

For any dispute arising under this Agreement or any Incorporated Document, the Associate must submit a written dispute notice to the Broker within thirty (30) calendar days of the date the Associate knew or reasonably should have known of the disputed determination. Failure to submit a timely written dispute notice waives the Associate’s right to the internal review and appeal process stated in this Section. It does not waive or shorten any claim the Associate may have under this Agreement or applicable law, and does not alter any limitations period established by law.

### Broker Review

Upon receipt of a written dispute notice, the Broker shall review the matter and provide a written response within a reasonable time. The Broker’s determination is final for internal administrative purposes.

### Mediation First

The parties shall first attempt good faith mediation in Lee County, Florida before a neutral mediator mutually selected within ten (10) business days of the Broker’s written response. Each party shall bear their own costs. The cost of the mediator shall be split equally.

### Litigation

If mediation does not resolve the dispute within thirty (30) days of the mediator’s appointment, either party may commence an action in the state or federal courts located in Lee County, Florida. Both parties consent to the exclusive jurisdiction and venue of those courts and waive any objection based on inconvenient forum. Nothing in this Section prevents either party from seeking injunctive or other equitable relief in those courts at any time, including before or during mediation, where necessary to prevent irreparable harm.

ASSOCIATE INITIALS _____

### Attorneys' Fees

Each party shall bear its own attorneys' fees and costs, except that the mediator or the court may award fees and costs against a party that acted in bad faith or brought a frivolous claim. In any action to collect amounts owed under this Agreement or any Incorporated Document, whether brought by the Company or the Associate, the prevailing party is entitled to recover reasonable attorneys' fees and costs.

### No Class Actions

All disputes shall be resolved on an individual basis. The Associate waives any right to participate in a class action, collective action, or representative proceeding. If any portion of this paragraph is held unenforceable, the remainder continues in effect, and the unenforceable portion shall be limited or severed to the minimum extent necessary to make the remainder enforceable.

### Continued Performance

During the pendency of any dispute, the Associate shall continue to perform all obligations relating to transactions then in progress, including file completion, document submission, client service, and cooperation with the Broker. This Section does not require the Associate to perform obligations that are themselves the subject of the dispute, and does not prevent either party from terminating this Agreement under Section 12 while a dispute is pending.

### Jury Trial Waiver

Both parties knowingly and voluntarily waive any right to a jury trial for any claim arising out of or relating to this Agreement or the Incorporated Documents, to the fullest extent permitted by law.

## §16. Governing Law

This Agreement shall be governed by and construed under the laws of the State of Florida, without regard to conflicts of law principles.

## §17. Force Majeure

Neither party shall be liable for failure to perform obligations under this Agreement when such failure is caused by events beyond their reasonable control, including but not limited to acts of God, natural disasters, hurricanes, war, terrorism, pandemic, epidemic, government orders, utility failures, or cyberattacks. During a force majeure event, affected deadlines shall be extended by the duration of the event plus a reasonable cure period not to exceed ten (10) calendar days. The party affected by a force majeure event shall provide written notice to the other party as soon as reasonably practicable, and in any event within forty eight (48) hours of the event or within forty eight (48) hours of the affected party's ability to communicate being restored, whichever is later. The affected party shall submit supporting documentation within five (5) business days of giving initial notice. This Section extends deadlines established by this Agreement and the Incorporated Documents only. It does not extend any deadline established by statute, by FREC rule, by an MLS, or by a third party, including reporting deadlines, escrow verification deadlines, and listing submission deadlines. The Associate remains responsible for those deadlines and must contact the applicable authority directly regarding any relief.

## §18. Entire Agreement; Notice; Order of Precedence; No Assignment

### Entire Agreement

This ICA, together with all Incorporated Documents listed at the beginning of this Agreement, constitutes the entire agreement between the parties. The Incorporated Documents are the Commission Structure Addendum, Exhibit A: Commission Fee Schedule, the Operations & Compliance Manual, the Fair Housing Policy (§56), the Advertising Policy (§57), the Social Media Policy (§58), the Errors & Omissions Addendum (§60), Record Retention & Confidentiality (§61), the Recruiting Reward Policy (§62), the Indemnification & Defense Addendum (§72), the Acknowledgments (§86 through §91), and the Confirmation of Communication (§92). Informational summaries, fee overviews, or marketing materials are nonbinding and do not modify this Agreement, the CSA, or Exhibit A.

### Modification and Notice

The Company may amend this Agreement and all Incorporated Documents at any time, effective immediately upon delivery of notice. Continued affiliation after notice constitutes acceptance of all updated terms. If an amendment increases any fee or charge payable by the Associate, the Associate may end the affiliation by written notice given within thirty (30) days after the amendment notice; no Short Notice Fee applies to that termination, and the fee in effect before the amendment applies until the termination is effective. No mutual signature is required for amendments to Incorporated Documents, policies, fee schedules, addenda, or Acknowledgments. The sole exception is that no amendment to commission rates, splits, transaction fees, or fee schedules shall alter the economic terms of any transaction supported by a fully executed purchase and sale agreement, listing agreement, or buyer brokerage agreement dated prior to the delivery of such notice.

ASSOCIATE INITIALS _____

**Notice and Version Control**

Amendments and all other notices from the Company under this Agreement may be delivered by email to the Associate's email address on file or by posting in the Company's compliance platform. Notice is deemed delivered and received upon sending or posting, and no reply or acknowledgment by the Associate is required. A telephone call or text message is not notice under this Agreement. Amendments apply prospectively only. The Company shall maintain version control for this Agreement and all Incorporated Documents, including version numbers and effective dates, and shall make the current version and the version in effect on any prior date accessible to the Associate through the compliance platform or within three (3) business days of a written request.

**Order of Precedence (General)**

Where a conflict arises on any matter other than compensation, the following order controls: (i) this ICA; (ii) the Commission Structure Addendum; (iii) Exhibit A; (iv) the Operations & Compliance Manual; and (v) all other Incorporated Documents. Where two provisions address the same subject and one is more specific, the more specific provision controls over the more general, regardless of where each appears. Where two Incorporated Documents rank equally and neither is more specific, the later dated document controls. Where an Incorporated Document expressly states that it supersedes this Agreement on a specific topic, that statement controls as to that topic only. Where a conflict cannot be resolved under this Section, the Broker shall determine the resolution in writing, and the Associate may contest that determination under Section 15.

**Order of Precedence (Compensation Matters)**

In the event of a conflict regarding compensation: (i) this ICA governs the legal relationship of the parties; (ii) the CSA governs commission calculation, application order, offsets, and disbursement mechanics; and (iii) Exhibit A governs commission plans, splits, fees, pricing, thresholds, and schedules.

**No Assignment**

Neither party may assign this Agreement or any rights hereunder without the prior written consent of the other party, except that the Company may assign this Agreement in connection with a merger, sale of assets, or change of control.

## §19. Severability; No Waiver

**Severability**

If any provision of this Agreement is held invalid, illegal, or unenforceable by a court of competent jurisdiction, such determination shall not affect the validity or enforceability of any other provision. The invalid or unenforceable provision shall be modified to the minimum extent necessary to make it enforceable while preserving the parties' original intent.

**No Waiver**

The failure of either party to enforce any provision of this Agreement, or to exercise any right or remedy available under this Agreement, shall not constitute a waiver of that provision, right, or remedy. No waiver shall be effective unless made in writing and signed by the party granting the waiver.

## §20. Consolidated Acknowledgment; Incorporation by Reference; Electronic Signatures

By executing this ICA, the Associate acknowledges and agrees to all Incorporated Documents listed above, including the Acknowledgments in Sections 86 through 91, as they exist on the Effective Date and as amended from time to time in accordance with Section 18. Continued affiliation after notice of an amendment constitutes acceptance of the amended document. No separate signatures are required on any Incorporated Document, including any Acknowledgment.

**Effective Date Definition**

"Effective Date" means the date on which both parties have executed this Agreement. The Broker's electronic signature for the Company is applied in advance, so the Effective Date is the date the Associate signs. The Company may decline the affiliation by written notice to the Associate at any time before the Associate becomes Active, and then refunds the E&O + Compliance Fee the Associate paid. For Incorporated Documents, the effective date of updates shall be as specified in the notice of amendment, effective immediately upon delivery.

"Start Date" means the date the Associate selects when signing this Agreement as the date the Associate plans to transfer the Associate's license to the Company. It may be the signing date or a later date. The Associate becomes Active on the Start Date or on the date the Department of Business and Professional Regulation records the Associate's license under the Company, whichever is later, and only once all onboarding requirements are complete and all required fees are paid. Until then, the Associate receives no access to Company systems, conducts no real estate activity on behalf of the Company, and is not paid by the Company.

ASSOCIATE INITIALS _____

**Electronic Signatures**

Electronic signatures shall have the same force and effect as original signatures. The parties consent to conduct this transaction electronically and agree that electronic records shall satisfy any requirement for writings under Florida law, including Florida's Uniform Electronic Transactions Act (Chapter 668, Florida Statutes).

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## COMMISSION STRUCTURE ADDENDUM

Incorporated into and made part of the ICA between Aari Realty LLC ("Company") and the affiliated independent contractor ("Associate"). Governs the calculation, application, timing, and disbursement of commissions, read together with the ICA and Exhibit A: Commission Fee Schedule.

### §21. Purpose & Scope

This Addendum establishes the mechanics by which commissions are processed, applied, adjusted, and disbursed. Fee amounts, plan pricing, and billing schedules are governed exclusively by Exhibit A. Sections 34, 35, and 36 establish the transaction types to which fixed allocations apply and the order in which deductions are taken. The allocations, percentages, and fee amounts themselves are set forth in Exhibit A. No fee amount, percentage allocation, or price appears in this Addendum.

### §22. Order of Precedence Within CSA

Order of precedence is governed by Section 18.

### §23. Commission Earned vs. Commission Payable

No commission is considered earned by the Associate unless and until: (1) the transaction has closed; (2) all funds under the transaction have been received and cleared by their intended recipients (in the case of Company Disbursement, by the Company; in the case of Split Disbursement at Closing under §67.2, by the Company as to its fees and by the Associate as to the Associate's share); (3) all required documentation has been submitted, reviewed, and approved; (4) all compliance, supervisory, and regulatory requirements have been met; and (5) the Broker has authorized release of funds. Compensation is earned only upon successful closing and receipt of funds by the Company, or by the settlement agent for disbursement under a Commission Disbursement Authorization signed by the Broker (Section 67.2); preparation of offers, contracts, or other transaction documents does not constitute earned compensation.

A commission that is earned is not automatically payable. Payment is subject to completion of all Company required compliance review, satisfaction of all financial obligations owed by the Associate, and application of all applicable offsets, deductions, and adjustments. The Company may delay disbursement to complete compliance review or resolve an outstanding issue affecting the amount payable, subject to the following: (a) the Broker shall notify the Associate in writing within three (3) business days of the delay, stating the specific issue and the action required to resolve it; (b) upon the Associate's completion of the required action, disbursement shall be released within three (3) business days; and (c) where the issue is not attributable to the Associate's action or inaction, the Company shall resolve it as promptly as practicable and, in any event, not later than thirty (30) days from the date the delay is initiated, absent a written extension stating the reason.

### §24. Commission Application Order

All commissions shall be calculated and applied in the following order, unless otherwise required by law: (1) Broker required compliance holds, if any; (2) referral obligations, if any, including referral fees owed to Aari Referrals LLC under Section 35 or to third party referral networks under Section 36, calculated on gross commission before any other deductions, and any marketing deduction approved in advance under Section 63; (3) Company transaction fees and charges as set forth in Exhibit A, which on transactions subject to a fixed allocation under Exhibit A are deducted from the Associate's share after the fixed allocation and on transactions under a commission plan are deducted from the Associate's share after the plan split; (4) offsets for outstanding balances owed by the Associate; and (5) net commission payable to Associate per applicable commission plan or fixed split. The Company's accounting determination shall be final absent manifest error. This provision governs the Company's calculation of a commission. It does not waive the Associate's right to dispute that calculation under Section 37 or Section 15. For Referral Sourced Transactions, the commission application order set forth in Section 35.2 controls and supersedes this general order to the extent of any conflict.

### §25. Offsets, Deductions & Withholdings

The Company is expressly authorized to offset, deduct, or withhold amounts from commissions payable to the Associate for: transaction fees, compliance fees, and administrative charges; unpaid invoices or balances; referral fees owed; returned payments or chargebacks; regulatory fines or penalties attributable to the Associate; and any other amounts owed under the ICA, this Addendum, or Exhibit A. This right of offset survives termination of the ICA.

For purposes of this Section, a fine or penalty is attributable to the Associate where it arises from the Associate's act, omission, or failure to comply with an obligation under this Agreement or applicable law. Where a fine arises from the conduct of more than one person, it is allocated proportionally. The Broker shall state the basis for attribution in writing at the time of the offset, and the Associate may dispute that determination under Section 37.

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Offsets under this Section are subject to the caps, notice requirements, and release deadlines stated in Section 7, Section 10, and Section 72, as applicable to the underlying obligation. Nothing in this Section authorizes an offset in excess of those limits.

### §26. Commission Plan Application

The commission plan applicable to any transaction is determined by the Associate's approved plan in effect on the date of the first fully executed listing agreement, buyer brokerage agreement, or purchase and sale agreement for that client, whichever is earliest, not at closing, and compliance with all eligibility requirements set forth in Exhibit A. Plan changes take effect on the Plan Change Activation Date stated in Exhibit A, Section 38.3, apply prospectively only, and do not affect a transaction for which the first such agreement is dated before that date. This Section does not apply where the Associate departs the Company before closing; compensation on that transaction is governed by the Departure Share in Exhibit A, Section 39.4, and Section 7 of the ICA.

### §27. Referrals & Cooperating Compensation

All referral compensation is subject to written referral agreements, receipt and clearance of referral funds, and compliance with applicable laws and brokerage policies. Administrative fees and referral splits are governed by Exhibit A and any applicable referral entity agreements.

### §28. Personal Transactions

A Personal Transaction qualifies only when the Associate's name, the Associate's spouse's name, or a business entity controlled by the Associate or the Associate's spouse appears on title as a principal to the transaction, determined at the time of contract execution and continuously maintained through closing. A transfer of title, ownership, or control after the contract is executed does not make a transaction a Personal Transaction, and any such transfer made to avoid the commission plan split is a Material Breach. "Control" includes 50%+ ownership, contractual authority to bind or direct the entity, beneficial trust interest, LLC management authority, or any arrangement where the Associate can materially influence or benefit from the transaction beyond ordinary arm's length participation. Personal Transactions receive no special commission treatment; the standard brokerage transaction fee set forth in Exhibit A applies, and no commission plan split applies. This applies uniformly to Associates on all commission plans. The Company may require documentation to verify title ownership or control and retains sole discretion to determine qualification based on economic substance.

Personal Transactions are excluded from the Company's Errors & Omissions coverage. The Associate is solely responsible for any resulting liability and is strongly encouraged to obtain individual coverage before proceeding.

### §29. License Status & Commission Rights

The Associate must hold an active license in good standing at all times during transaction negotiation, contract execution, closing, and commission disbursement. If the Associate's license is inactive, suspended, terminated, or disassociated prior to commission disbursement, compensation is not payable on any transaction in which the Associate performed licensed activity while the license was not active. Commissions earned on transactions in which all licensed activity was performed while the Associate was properly licensed remain payable and are released when the license is restored to active status, subject to any offset the Company is entitled to apply. The complete terms are set forth in Section 87, which controls. The Associate must report any change in license status to the Broker within twenty four (24) hours as required by Section 87.

### §30. Independent Contractor Status

Nothing in this Addendum creates an employer employee relationship; the Associate remains an independent contractor responsible for all taxes, withholdings, and statutory obligations.

### §31. Survival

All provisions relating to commission calculation, offsets, payment obligations, enforcement, and dispute resolution survive termination of the ICA.

### §32. Amendment

This Addendum may be amended by the Company effective immediately upon notice to the Associate by any method set forth in Section 18; amendments apply to all transactions not yet under a fully executed purchase and sale agreement, listing agreement, or buyer brokerage agreement as of the date of notice.

### §33. Entire Agreement

This Addendum, together with the ICA and Exhibit A, constitutes the entire agreement between the parties with respect to commission structure, application, and disbursement.

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## §34. Internal Deal Handling & Compensation (Company Assisted Transactions)

A Company Assisted Transaction is any transaction in which the Broker assigns, reassigns, or redirects a client, listing, or pending transaction from one Associate to another for the purpose of protecting the client relationship, ensuring performance, or preserving the transaction. Upon reassignment, the transaction is deemed a brokerage controlled transaction and is no longer considered the original Associate's independent deal.

The Broker may initiate reassignment at their sole discretion, including for: failure to respond to client communication within forty eight (48) hours of documented contact attempt; failure to execute requested pricing, marketing, or contractual updates within the timeframe specified by the Broker in writing; listing expiration risk due to inaction or delay; incomplete or noncompliant file management; inability to perform due to schedule, capacity, or external employment; client complaint or expressed dissatisfaction; or Broker determination that reassignment is necessary to protect the transaction or the brokerage. The Broker's determination is final for internal administrative purposes, subject to Section 37, and does not require Associate consent.

The Broker shall provide written notice to the original Associate at the time of reassignment, stating the transaction reassigned, the reason for reassignment, and the effective date. An Associate who disputes a reassignment or the compensation consequences of a reassignment may do so under Section 37. Nothing in this Section waives that right. Reassignment under this Section and disciplinary action under the Operations & Compliance Manual are separate remedies. The Broker's election of one does not preclude the other, and does not constitute a waiver of any other remedy.

Upon reassignment: (1) the commission is split between Aari Realty LLC and the assigned Associate in the fixed allocation set forth in Exhibit A for Company Assisted Transactions; and (2) the applicable transaction fee set forth in Exhibit A is deducted from the assigned Associate's share, and the Company's share is not reduced by it. This allocation is fixed and applies regardless of the assigned Associate's standard commission plan; Mentorship Path, Aari Growth, or Aari Max does not apply to reassigned transactions. The assigned Associate is considered the servicing agent and assumes full responsibility for execution, communication, and completion of the transaction.

The original Associate is not entitled to compensation upon reassignment. Any compensation to the original Associate is solely at the discretion of the Broker, must be approved and documented in writing prior to closing, is paid from the brokerage portion of the commission only, and shall not reduce or impact the assigned Associate's compensation. No ranges, percentages, or guidance figures are established or implied by this Addendum.

A Referral is a voluntary transfer initiated by the Associate prior to performance failure or broker intervention and is subject to separate referral agreements, not governed by this Section. A Reassignment is a broker initiated transfer due to performance concerns, risk, or operational necessity and is governed exclusively by this Section, never treated as a referral under any circumstance. The Broker retains full authority over classification, assignment of the servicing Associate, and compensation structure within the parameters outlined herein; all determinations made by the Broker are final for internal administrative purposes, subject to the dispute process in Section 37 of this Addendum and Section 15 of the ICA.

## §35. Referral Sourced Transactions (Aari Referrals LLC Leads)

**§35.1 Definition and Classification.** A Referral Sourced Transaction is any transaction in which: (1) a lead or client is submitted to Aari Realty LLC by Aari Referrals LLC pursuant to a written referral agreement between the two entities; and (2) the Broker assigns the transaction to an Aari Realty LLC Associate for execution and completion. A Referral Sourced Transaction is distinct from a Company Assisted Transaction under Section 34; these are separate transaction types governed by separate rules, and a Referral Sourced Transaction is not a reassignment and shall not be treated as one under any circumstance.

**§35.2 Commission Flow and Application Order.** For all Referral Sourced Transactions, the gross commission received by Aari Realty LLC is distributed in the following fixed order, which is nonnegotiable and may not be altered absent a written amendment to this Addendum: (1) **Referral Fee**: the referral fee percentage set forth in Exhibit A is paid to Aari Referrals LLC pursuant to the written referral agreement, calculated on gross commission before any deductions; (2) **Transaction Fee**: the applicable transaction fee set forth in Exhibit A is deducted from the assigned Associate's share after the split, does not reduce the referral fee, and does not reduce the Company's share; and (3) **Split**: the remaining commission after the referral fee is allocated between Aari Realty LLC and the assigned Associate in the fixed allocation set forth in Exhibit A for Referral Sourced Transactions.

On a Referral Sourced Transaction, the transaction fee under Section 39.1 is charged once, from the assigned Associate's share after the fixed allocation, as stated in Section 39.3. The assigned Associate assumes full responsibility for execution, communication, client service, and completion from the date of assignment; is not entitled to any portion of the referral fee paid to Aari Referrals LLC; and is not entitled to compensation under their standard commission plan for these transactions. The Aari Referrals LLC associate who submitted the referral has no claim to, and no right to receive, any portion of the transaction commission distributed under this Section; the referring associate's compensation is governed exclusively by the Aari Referrals LLC Referral Associate Agreement and its Exhibit

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A Referral Fee Schedule.

No Referral Sourced Transaction shall be processed or compensated under this Section unless a written referral agreement, fully executed by all required parties, is on file prior to closing; absent a written referral agreement, the transaction shall be treated as a standard transaction under the assigned Associate's commission plan. The Broker retains full authority over classification of a transaction as a Referral Sourced Transaction, assignment of the servicing Associate, and verification that all documentation requirements have been satisfied prior to disbursement; all determinations made by the Broker are final for internal administrative purposes, subject to the dispute process in Section 37 of this Addendum and Section 15 of the ICA.

### §36. Third Party Referral Network Transactions

A Third Party Referral Network Transaction is any transaction in which a lead or client is sourced through an external referral network or platform (including but not limited to Opcity, ReadyConnect Concierge, or any substantially similar service) and either sent by the network directly to an Aari Realty LLC Associate, without Company staff handling it first, or assigned to an Aari Realty LLC Associate by the Broker. A lead that Company staff first receive, answer, or schedule before the Broker assigns it is a Company Generated Lead under Section 9. These transactions are distinct from Referral Sourced Transactions under Section 35 and from Company Assisted Transactions under Section 34; each transaction type is governed by its own separate rules, and classification is determined solely by the Broker and is final for internal administrative purposes, subject to the appeal in Section 9 of the ICA and the dispute process in Section 15 of the ICA.

Prior to receiving any lead from a third party referral network, the Associate must complete a written acknowledgment confirming they have reviewed the network's current terms of service, referral fee schedule, and performance requirements, signed and submitted before the Associate's first lead acceptance and renewed annually or upon material change to the network's terms, whichever occurs first. By accepting a lead from a third party referral network, the Associate expressly acknowledges that the transaction is subject to the network's own agreement, terms of service, referral fee schedule, performance standards, and rules as amended from time to time, and that Aari Realty LLC does not control, modify, or guarantee the terms of any third party referral network agreement.

The referral fee applicable to a Third Party Referral Network Transaction is determined exclusively by the third party network's fee schedule in effect at the time the lead is accepted. Aari Realty LLC makes no representations or guarantees regarding the referral fee percentage or amount, the consistency or continuity of the network's fee schedule, or lead quality, volume, or availability. After the third party referral fee is paid, the remaining commission is allocated under Section 39.7 of Exhibit A, whether the network sent the lead directly to the Associate or the Broker assigned it. Network leads are delivered through the network's own platform. The platform's acceptance record, showing the Associate and the date and time of acceptance, is the record of delivery and is kept in the transaction file. The fixed allocations applicable to Company Assisted Transactions (Section 34) and Referral Sourced Transactions (Section 35), as set forth in Exhibit A, do not apply to Third Party Referral Network Transactions unless separately triggered by a reassignment event under Section 34.

The Associate agrees to comply with all rules, response time requirements, performance standards, and client communication obligations imposed by the third party referral network; maintain active status and good standing with the network at all times during the transaction; notify the Broker immediately upon receipt of any notice of noncompliance, suspension, or removal from the network; and conduct all client interactions consistent with both the network's standards and Aari Realty LLC's Operations and Compliance Manual. Aari Realty LLC is not responsible or liable for changes to third party referral fee structures, terms, or performance requirements; loss of lead access, network suspension, or removal from any third party platform; lead quality, conversion rates, or transaction outcomes; or any dispute between the Associate and the third party network; all such disputes are the sole responsibility of the Associate. The Broker retains full authority over classification of a transaction under this Section, eligibility of Associates to receive third party referral leads, and removal of an Associate from third party lead eligibility; all determinations made by the Broker are final for internal administrative purposes, subject to the dispute process in Section 37 of this Addendum and Section 15 of the ICA.

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### §37. Dispute Resolution (Commission Matters)

For any dispute arising out of or relating to commission calculations, fee deductions, split allocations, or any other compensation matter governed by this Addendum, the Associate must submit a written dispute notice to the Broker within thirty (30) calendar days of the date the Associate knew or reasonably should have known of the disputed calculation or determination. Failure to submit a timely written dispute notice waives the Associate's right to the internal review and appeal process stated in this Section. It does not waive or shorten any claim the Associate may have under this Agreement or applicable law, and does not alter any limitations period established by law. Upon receipt, the Broker shall review the matter and provide a written response, including the basis for the determination and any supporting documentation, within a reasonable time. If the dispute is not resolved through the Broker's written response, mediation, venue, attorneys' fees and costs are governed by Section 15 of the ICA. All disputes shall be resolved on an individual basis; the Associate waives any right to participate in a class action, collective action, or representative proceeding of any kind. During the pendency of any dispute, the Associate shall continue to perform all obligations relating to transactions then in progress, including file completion, document submission, client service, and cooperation with the Broker. This Section does not require the Associate to perform obligations that are themselves the subject of the dispute, and does not prevent either party from terminating this Agreement under Section 12 while a dispute is pending.

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## COMMISSION FEE SCHEDULE: EXHIBIT A

**Aari Realty LLC · Licensed Real Estate Brokerage**

**Dated October 13, 2026 · Effective on the date the Associate signs the ICA dated October 13, 2026 online**

This Exhibit A is an Incorporated Document of the Independent Contractor Agreement ("ICA") between Aari Realty LLC ("Company") and the Associate. It governs commission plans, splits, fees, pricing, thresholds, and billing schedules. Section references are to the ICA dated October 13, 2026. Where an Associate's signed agreement uses different numbering, the reference is to the provision of that agreement covering the same subject. Capitalized terms have the meanings given in the ICA. “Exhibit Effective Date” means the date the Associate signs the ICA dated October 13, 2026 online.

**Associates Affiliated Before the Exhibit Effective Date.** An Associate affiliated with the Company before the Exhibit Effective Date keeps the commission plan, split, and recurring fee stated in the Associate's signed agreement until the day the Associate signs the ICA dated October 13, 2026 online. From that day, all terms of this Exhibit apply to that Associate.

### §38. Commission Plans

#### §38.1 Available Commission Plans

At onboarding, the Associate selects one of the three commission plans below as their initial commission plan of record. All three plans are available at signup, subject to the Mentorship Path rule below and to Broker review and acceptance. Based on the Associate's experience, supervision needs, compliance history, and regulatory risk profile, the Broker may require a newer or higher risk Associate to begin on the Mentorship Path. After onboarding, an Associate may request to change plans under Section 38.3.

| Plan | Split (Associate / Company) | Transaction Fee (per side) | Description | Associate Initial |
|---|---|---|---|---|
| **Mentorship Path** | 75% / 25% | $499 residential or commercial. 10% on vacant land and rentals, minimum $100, maximum $499 | Full support plan: required transaction coordination through Aari Transactions LLC (fee under Section 38.4), marketing, accountability, and 1:1 broker access. | _____ |
| **Aari Growth** | 85% / 15% | $499 residential or commercial. 10% on vacant land and rentals, minimum $100, maximum $499 | More independence, with deal support when you need it. | _____ |
| **Aari Max** | 100% | $499 residential or commercial. 10% on vacant land and rentals, minimum $100, maximum $499 | Fully independent, with the same Company platforms as every plan. | _____ |

**Mentorship Path.** An Associate with fewer than three closed residential sales in the twenty four (24) months before the date the Associate signs the ICA begins on the Mentorship Path. A residential sale is a closed sale of a one to four unit residential property, including a condominium or townhome, at Aari Realty LLC or at another brokerage, verified by the Broker. Rentals and vacant land do not count. An Associate who meets that test may select any plan, subject to Broker review and acceptance. Whatever the Associate’s sales history, the Broker may place any Associate on the Mentorship Path at the Broker’s discretion based on experience, time away from active practice, supervision needs, compliance history, and regulatory risk. The Associate and the Broker may agree in writing that the Associate completes one or two mentored transactions first.

#### §38.2 Commission Plan Selection

At onboarding, the Associate selects one commission plan as their initial plan of record: Mentorship Path (75% Associate / 25% Company) at $59/month, Aari Growth (85% / 15%) at $79/month, or Aari Max (100%) at $99/month. The selected plan sets the Associate's split and Monthly Brokerage Fee under Section 41.1. Selection is subject to Broker review and acceptance; the Broker may place a newer or higher risk Associate on the Mentorship Path in furtherance of the Broker's supervisory obligations under Florida law. The $199 annual E&O + Compliance Fee applies to all plans. The selected plan remains in effect until changed under Section 38.3.

**Service Credits.** Associates on a commission plan in which the Company receives a percentage share of commission receive two (2) service credits per calendar month. Each credit is redeemable for one offer preparation or one MLS listing input performed by Aari Transactions LLC. Credits do not roll over and expire at the end of the month in which they are issued. Credits do not apply to transaction coordination. Services beyond the monthly credits are available at the Aari Transactions LLC rate in effect on the date the service is ordered. Associates on a plan in which the Associate receives one hundred percent of commission do not receive service

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credits.

### §38.3 Commission Plan Changes

**Eligibility.** An Associate may request a commission plan change once the Associate has at least three closed residential sales in the twenty four (24) months before the request, at Aari Realty LLC or at another brokerage, verified by the Broker. A residential sale is a closed sale of a one to four unit residential property, including a condominium or townhome. Rentals and vacant land do not count. Until eligible and approved for a change, the Associate remains on the plan in effect at onboarding.

**Request Process.** The Associate submits a written request to the Broker. The Broker will approve or deny in writing within five (5) business days. Approval is at the Broker's sole discretion based on compliance history, transaction quality, and performance. The Broker may deny a request without cause.

**Plan Change Activation Date.** An approved plan change takes effect on the date of the Broker's written approval. The Monthly Brokerage Fee for the new plan is billed as set forth in Section 68.1 of the Operations and Compliance Manual.

**Transaction Protection.** The plan in effect before the Plan Change Activation Date applies to every transaction for which the first fully executed listing agreement, buyer brokerage agreement, or purchase and sale agreement for that client is dated before the Plan Change Activation Date. Those transactions close under the prior plan, except where the Associate departs the Company before closing, which is governed by the Departure Share in Section 39.4 and Section 7 of the ICA.

**Frequency Limit.** An Associate may not submit a new plan change request within ninety (90) days of their most recent Plan Change Activation Date.

**Downgrade Rule.** The same eligibility, process, activation date, and frequency limit apply in both directions. Moving from Aari Max back to Aari Growth requires the same process.

### §38.4 Transaction Coordination Fee

Where the ICA requires transaction coordination, the service is provided by Aari Transactions LLC. The fee is deducted from the Associate's commission at closing and is payable to Aari Transactions LLC. The client is not charged for transaction coordination. The fee is the Aari Transactions LLC rate in effect on the date the transaction contract is executed, as published at aaritransactions.com. A rate change does not apply to a transaction already under contract. Aari Transactions LLC may change its rates at any time, and the new rate applies to every transaction contract executed after the change.

## §39. Transaction Types and Transaction Fee Application

### §39.1 Standard Transaction Fee (Per Side, All Plans, All Transaction Types)

The transaction fee is charged per side and is the same on every commission plan. Residential and commercial transactions pay a flat fee. Vacant land sales and residential rentals pay ten percent (10%) of the gross commission received on that side, never less than $100.00 and never more than $499.00.

| Transaction Type | Transaction Fee (Per Side) |
|---|---|
| **Residential Sale** | $499.00 |
| **Commercial Sale or Commercial Lease** | $499.00 |
| **Vacant Land Sale** | 10% of the gross commission; minimum $100.00, maximum $499.00 |
| **Residential Rental, Landlord or Tenant Representation** | 10% of the gross commission; minimum $100.00, maximum $499.00 |

**Personal Transactions and Reduced Commissions.** The transaction fee is owed in full even where the Associate reduces or waives the commission, including on a Personal Transaction. A residential or commercial transaction pays $499.00 whatever commission is charged. A vacant land sale or residential rental pays at least the $100.00 minimum. No commission plan split applies to a Personal Transaction.

### §39.2 Application and Collection

Commercial transactions and residential rentals are covered by the table in Section 39.1. The same rule applies to landlord representation and tenant representation.

Transaction and compliance fees are assessed per side for any transaction facilitated or processed under the Company's brokerage license. If the Associate represents both sides of a transaction where legally permitted, the applicable transaction fee applies to each

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side.

**Payment and Collection of the Transaction Fee.**

The Associate owes the transaction fee to the Company on every side. The Associate may pass the fee to the client as stated below. Where the client does not pay it at closing, the Associate pays it.

(a) Charging the client. The Associate may charge the fee to the client only where it is disclosed to the client in writing, signed and dated by the client, and shown on the Closing Disclosure or settlement statement. Nothing in this Exhibit requires the Associate to charge the fee to a client.

(b) Not collected at closing. If the fee is not collected from the client at closing, the Company deducts it from the Associate's commission. Where there is no commission to deduct it from, the Company invoices the Associate.

(c) Amounts above the fee. On the Associate's own transactions, the Associate may charge the client a transaction fee higher than the Section 39.1 fee where the client agrees to it in writing as stated in (a). The Company keeps the Section 39.1 fee and the excess is paid to the Associate. The Broker may review any amount above the Section 39.1 fee and, in the Broker's sole discretion, reduce it or require a written amendment where the Broker determines the amount is unreasonable or exposes the Company to risk.

(d) Company provided leads. On Referral Sourced Transactions under Section 35 and on transactions from a Company Generated Lead as defined in Section 9, the Associate may charge the client the Section 39.1 fee and nothing over it. Any amount collected from the client above that fee is returned to the client. On Referral Sourced Transactions the fixed allocation set forth in this Exhibit A governs. Any bonus tied to the transaction is also subject to that same allocation and is not retained by the Associate alone.

**§39.3 Referral Sourced Transaction Fees (Aari Referrals LLC Leads)**

For Referral Sourced Transactions as defined in Section 35, the transaction fee is the amount set in Section 39.1 for that transaction type. It is charged once, in the manner stated below, and the assigned Associate does not pay a separate transaction fee on that side.

The transaction fee is deducted from the assigned Associate's share after the fixed allocation under Section 39.5. The Company's share is not reduced by it. The transaction fee does not reduce the referring associate's compensation.

**§39.4 Company Assisted Transaction Allocation**

For Company Assisted Transactions as defined in Section 34, the commission is allocated fifty percent (50%) to Aari Realty LLC and fifty percent (50%) to the assigned Associate. The applicable transaction fee is deducted from the assigned Associate's share. This allocation is fixed and applies regardless of the assigned Associate's commission plan.

**Departure Before Closing.** Where an Associate departs the Company before closing of a transaction originating from a Personally Generated Client under a purchase and sale agreement fully executed before the departure date, the transaction remains with the Company. The departing Associate receives the share the Associate’s commission plan would have paid, less the Completion Allocation, the transaction fee, and any offset the Company is entitled to apply. The Completion Allocation is up to twenty percent (20%) of the gross commission, in an amount the Broker sets in writing based on the work remaining to close, and never more than the departing Associate’s share. It is paid to the Associate the Broker assigns to complete the transaction or, where the Broker completes it, to Aari Realty LLC. Aari Realty LLC also keeps its own share under the departing Associate’s commission plan. With the written consent of the client and the Broker, the Broker may instead release the transaction to the departing Associate’s new brokerage for a referral fee of fifteen percent (15%) of the gross commission, paid to Aari Realty LLC at closing; no other Departure Share is then owed by either party. This is the Departure Share referred to in Section 7 of the ICA.

**§39.5 Referral Sourced Transaction Allocation**

For Referral Sourced Transactions as defined in Section 35: the Referral Fee is twenty five percent (25%) of gross commission, paid to Aari Referrals LLC before any deduction. After the Referral Fee is deducted, the remaining commission is allocated fifty percent (50%) to Aari Realty LLC and fifty percent (50%) to the assigned Associate. The applicable transaction fee is deducted from the assigned Associate's share under Section 39.3. This allocation is fixed and applies regardless of the assigned Associate's commission plan.

**§39.6 Company Lead Transaction Allocation**

For transactions originating from a Company Generated Lead as defined in Section 9, after deduction of any referral fee and any marketing deduction approved in advance under Section 63, the remaining commission is allocated fifty percent (50%) to Aari Realty LLC and fifty percent (50%) to the Associate. The applicable transaction fee is deducted from the Associate's share. This allocation is fixed and applies regardless of the Associate's commission plan.

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### §39.7 Third Party Referral Network Allocation

For Third Party Referral Network Transactions as defined in Section 36, after deduction of the network's referral fee, the remaining commission is allocated fifty percent (50%) to Aari Realty LLC and fifty percent (50%) to the Associate. The applicable transaction fee is deducted from the Associate's share. This allocation is fixed and applies regardless of the Associate's commission plan and whether the network sent the lead directly to the Associate or the Broker assigned it.

## §40. Commission Base and Minimum Floor

Commission is negotiable and is not set, fixed, controlled, recommended, or required by Aari Realty LLC. The Associate determines all compensation terms directly with the client.

This Section applies to (a) all Associates operating under a commission plan in which the Company receives a percentage share of commission, which as of the date of this Exhibit means the Mentorship Path and Aari Growth plans, (b) all Referral Sourced Transactions, (c) all transactions originating from a Company Generated Lead as defined in Section 9, (d) all Company Assisted Transactions as defined in Section 34, and (e) all Third Party Referral Network Transactions as defined in Section 36, in each case regardless of the Associate's commission plan. This Section does not apply to other transactions under a commission plan in which the Associate receives one hundred percent (100%) of commission.

For the transactions described above, the Company's share is calculated on the Commission Base. The Commission Base is the greater of the gross commission actually received on that side or the floor in the table below. The Associate may charge the client any amount. If the gross commission is less than the floor, the difference comes only from the Associate's share. The Company's share never exceeds the commission actually received on that side. Referral fees are calculated on the commission actually received.

| Transaction Type | Floor |
|---|---|
| **Residential and Vacant Land Sales** | 2.5% of sales price |
| **Commercial Sales** | 2.5% of sales price |
| **Residential Rentals** | One full month of rent |
| **Commercial Leases** | 2.5% of total lease value |

**Referral Sourced Transactions.** On a Referral Sourced Transaction, the Referral Fee is calculated on the gross commission actually received. The Company's fifty percent (50%) allocation under Section 39.5 is calculated as if the gross commission equaled the Commission Base: the Commission Base, less the Referral Fee actually paid, divided by two. The Associate receives what remains of the commission actually received. The Company's allocation never exceeds the amount actually available after the Referral Fee.

**Company Generated Leads, Company Assisted Transactions, and Third Party Referral Network Transactions.** On a transaction under Section 39.4, Section 39.6, or Section 39.7, the Company's fifty percent (50%) allocation is calculated as if the gross commission equaled the Commission Base: the Commission Base, less any referral fee and approved marketing deduction actually taken, divided by two. The Associate receives what remains of the commission actually received. The Company's allocation never exceeds the amount actually available after those deductions.

The applicable transaction fee under Section 39.1 or Section 39.3 continues to apply in full, including where the Associate's share is zero.

Nothing in this Section requires the Associate to charge any client a specific rate, minimum fee, or pricing structure.

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## §41. Annual and Ongoing Compliance Fees

### §41.1 Monthly Brokerage Fee

| Plan | Monthly Brokerage Fee | Billing Schedule |
|---|---|---|
| **Mentorship Path** | $59.00 per month | Billed monthly, as set forth in Manual Section 68.1 |
| **Aari Growth** | $79.00 per month | Billed monthly, as set forth in Manual Section 68.1 |
| **Aari Max** | $99.00 per month | Billed monthly, as set forth in Manual Section 68.1 |

The Monthly Brokerage Fee is set by the Associate's commission plan. Billing dates and the treatment of a billing cycle in which the Associate terminates are governed by Section 68.

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### §41.2 E&O + Compliance Fee

| Fee | Amount | Billing Schedule |
|---|---|---|
| **E&O + Compliance Fee** | $199.00 per year | Billed annually; applies to all plans |

The E&O + Compliance Fee is charged to the Associate's card on file at the times set forth in Section 68.1 of the Operations and Compliance Manual. The fee is not refundable, except as stated in the Effective Date definition in the ICA.

**Move to Aari Referrals LLC.** Where the Broker moves the Associate’s license to Aari Referrals LLC under Section 3 of the ICA, the E&O + Compliance Fee already paid for the current year covers the Aari Referrals LLC membership fee until the Associate’s next Onboarding Anniversary with the Company. No fee already charged is refunded.

When each fee is charged, including at signing, is set forth only in Section 68.1 of the Operations and Compliance Manual; this Exhibit A sets the amounts, and the Monthly Brokerage Fee is applied at the rate stated in Section 41.1 above. The E&O + Compliance Fee applies to all Associates regardless of commission plan; the Monthly Brokerage Fee varies by plan. Both fees are billed and enforced under Section 68 of the Operations and Compliance Manual.

### §41.3 SWITCH199 First Year Offer

$199 off the first year compliance charge, applied once at checkout with code SWITCH199. Limited to the first 25 Associates. Offer ends March 31, 2027. New Aari Realty Associates only. Cannot be combined with another offer.

For this offer, the first year compliance charge is the E&O + Compliance Fee stated in Section 41.2. The offer applies to the first year only. Any Associate new to Aari Realty qualifies, including a new licensee. The E&O + Compliance Fee is due at the full amount on every later Onboarding Anniversary.

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## §42. Administrative and Conditional Fees

| Fee | Amount |
|---|---|
| **Personal Transaction (Residential)** | Section 39.1 fee, same as standard |
| **Personal Transaction (Land)** | Section 39.1 fee, same as standard |
| **Collection Share (third party commission dispute requiring Broker intervention)** | Up to 50% of the disputed amount collected |
| **Administrative Fee, Payout Processing (per payout)** | 10% of the payout; minimum $100.00, maximum $499.00 |
| **Late Document Upload (per occurrence)** | $49.00 |
| **File Not Submitted Until Closing or Later** | $199.00 |
| **File Completion Fee Cap (per transaction file)** | $199.00 |
| **Final Deadline (60 days after closing, file still incomplete)** | Associate's remaining share retained by the Company |
| **Late Payment Fee** | $25.00 |
| **Returned Payment Fee** | $25.00 |
| **Short Notice Fee (affiliation ends without the written notice the ICA requires)** | $99.00 |
| **E&O Payment Plan Threshold** | $1,000.00 |

**E&O Payment Plan Threshold.** The amount above which the Company offers a written payment plan for a retention or deductible obligation under Section 6.

**Grace Period.** A five (5) calendar day grace period applies to all recurring fees (Monthly Brokerage Fee and E&O + Compliance Fee). Late Payment Fee: $25 applies to any balance outstanding after the grace period. Returned Payment Fee: $25 per occurrence for NSF, chargebacks, or rejected payments.

**Administrative Fee (Payout Processing).** 10% of the payout, subject to a minimum of $100.00 and a maximum of $499.00. The fee is calculated on the Associate's share of the collected funds before the fee is deducted. In no event shall the fee exceed that share. This fee is charged only when a retainer cancellation or other administrative work requires the Company to process a payout for the Associate. It is not a general listing cancellation fee. It is not charged because a listing agreement, buyer brokerage agreement, or contract is cancelled, withdrawn, or terminated. It applies only when the Company must perform payout processing work. The fee is deducted from the collected funds before the payout is issued and is never invoiced separately. The fee is taken only from the Associate's share of the collected funds and never from any amount owed to a client or other third party. This fee does not apply to a commission disbursement on a closed transaction on which a transaction fee under Section 39 is charged. It does not apply to a payout on which the Referral Administrative Fee under Section 43.1 is charged. It never applies to the Recruiting Reward under Section 43.2 or to any other amount the Company pays from its own funds. The commission plan split does not apply to a retainer or cancellation payout. This fee is the only Company charge on it, on every commission plan.

**File Completion.** Documents must be uploaded to the compliance platform within the deadlines stated in the Operations & Compliance Manual. Failure to upload required documents within the applicable deadline carries a fee of $49.00 per occurrence. Where a transaction file is not created or submitted until the date of closing or later, a fee of $199.00 applies. Total file completion fees under this paragraph shall not exceed $199.00 per transaction file.

**Commission Disbursement Authorization.** The Broker issues the Commission Disbursement Authorization only after the Associate submits all required closing documentation. Until then the Associate’s share is held, and the file completion fees and the Final Deadline in this Section apply. The upload deadlines are stated in Section 50 of the Operations & Compliance Manual and the Final Deadline in this Section; any reminder the Company sends is a courtesy and not a condition of any fee.

**Final Deadline.** Where the complete compliance file and all required closing documentation have not been submitted within sixty (60) days after closing, the Associate's remaining share of the commission on that transaction is retained by the Company. The retained amount is a reasonable estimate of the Company's cost to complete the file and of the audit and regulatory exposure an incomplete file creates, which are difficult to calculate in advance, and is not a penalty. No notice is required for an incomplete file. This paragraph

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does not apply where the Associate has submitted every required document and the file remains incomplete for reasons outside the Associate's control. The Broker may release the retained balance, at the Broker's discretion, once the file is complete. A commission subject to this paragraph is an Abandoned Commission.

**Unclaimed Share.** Where the file is complete and approved but the Associate's share cannot be paid because the Associate has not claimed it or has not provided the information needed to pay it, the Company holds the share for the Associate and does not retain it. A share that remains unclaimed is reported and remitted as unclaimed property under Chapter 717, Florida Statutes, as amended.

The fees in this Section are assessed against commission proceeds. Until the Final Deadline, the Associate remains entitled to the balance of the commission once the file is complete and approved, after the fees stated here and any other offset the Company is entitled to apply.

**Fees Not Set by This Exhibit.** A fee an Associate negotiates directly with the Associate's own client, including any listing cancellation fee, is not a Company fee and is not set by this Exhibit. Any such fee is collected only in the name of Aari Realty LLC, as Florida law requires. Any such fee is subject to the Broker's discretion, and the Broker may reduce or disallow it at any time before it is collected.

**Short Notice Fee.** The Short Notice Fee applies only to an Associate whose first affiliation date with the Company falls on or after the date this Exhibit was issued. The Short Notice Fee of $99.00 applies where the Associate ends affiliation without giving the thirty (30) days' written notice the ICA requires. It is charged in addition to the one Monthly Brokerage Fee owed in place of the notice period under Section 12 of the ICA. The fee is a reasonable estimate of the Company's compliance and file transfer costs, which are difficult to calculate in advance, and is not a penalty. It may be deducted from any amount otherwise payable to the Associate. It does not apply where the Company ends the affiliation, where the Associate ends it within thirty (30) days after notice of a fee increase under Section 18 of the ICA, or where the Associate's license moves to Aari Referrals LLC under Section 3 of the ICA. No other fee is charged for ending affiliation within the first year when the thirty (30) days' written notice is given.

### §42.1 Collection Share

Where collecting a commission requires the Broker's intervention in a dispute with another brokerage, a client, or any other third party, the Company may retain up to fifty percent (50%) of the disputed amount collected as the Collection Share. The Collection Share is a reasonable estimate of the Company's administrative and legal cost of collection, which is difficult to calculate in advance, and is not a penalty. The Broker states the share retained in the written accounting under Section 46 of the Operations & Compliance Manual. The Collection Share never applies to a dispute between the Associate and the Company and does not reduce the undisputed portion of the commission.

**Definitions.** As used in this Exhibit A, "Personal Transaction" has the meaning set forth in Section 28 of the CSA.

## §43. Referral Compensation and Incentives

### §43.1 Incoming Third Party Referrals

Referral Administrative Fee: 10% of the referral payment, subject to a minimum of $100.00 and a maximum of $499.00. In no event shall the fee exceed the total referral payment.

**Third Party Referral Network Transactions (Opcity, ReadyConnect, or Similar Platforms).** Transactions sourced through third party referral networks are governed by Section 36 and are subject to the following: the referral fee is determined exclusively by the network's fee schedule in effect at the time the lead is accepted; Aari Realty LLC does not set, control, or guarantee the referral fee percentage or amount; referral fee percentages are subject to change at any time per the network's terms, and Associates are responsible for reviewing the network's fee schedule before accepting any lead; after the network's referral fee is paid, the remaining commission is allocated under Section 39.7; the fixed allocations set forth in this Exhibit A for Company Assisted Transactions and Referral Sourced Transactions do not apply to these transactions, and where Company staff handled the lead before assignment it is a Company Generated Lead allocated under Section 39.6; and by accepting a lead, the Associate agrees to be bound by that network's rules, regulations, performance standards, and fee schedule in effect at the time of acceptance. Full terms are set forth in Section 36, incorporated herein by reference.

### §43.2 Recruiting Reward

Recruiting Reward: $99.00, paid within thirty (30) days after all eligibility conditions in Section 62 are met. The amount is the amount in effect on the date the recruited Associate first affiliates with the Company.

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### §44. Enforcement and Application

All fees, offsets, payment enforcement, license status consequences, survival obligations, and dispute resolution provisions applicable to compensation matters are governed by the ICA, the CSA, and Section 68 of the Operations and Compliance Manual, and are incorporated herein by reference. This Exhibit A may be amended by the Company effective immediately upon notice by any method set forth in Section 18. No amendment alters transactions already under a fully executed purchase and sale agreement, listing agreement, or buyer brokerage agreement as of the date of notice. Unless a Section states otherwise, any other fee is the amount in this Exhibit A in effect on the date the fee is charged.

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**OPERATIONS & COMPLIANCE MANUAL**

Order of precedence is governed by Section 18.

## §45. DEFINITIONS

“Active”: Has the meaning set forth in the ICA Definitions: the Start Date or the date the Department of Business and Professional Regulation records the Associate’s license under the Company, whichever is later, once all onboarding requirements are complete and all required fees are paid. An Associate remains Active only while maintaining current license status.

“Inactive”: An Associate who has requested or been placed in inactive status, is not eligible to engage in new real estate transactions, but maintains affiliation with the Company.

“Good Standing”: has the meaning set forth in Section 7.

“Material Breach”: Includes: (a) violations resulting in client harm, complaint, or financial loss; (b) regulatory investigation, fine, or disciplinary action by DBPR, FREC, MLS, or NAR; (c) repeated violations of the same policy after written warning; (d) any violation involving fraud, misrepresentation, discrimination, or fair housing law violations; and (e) failure to cure a nonmaterial breach within ten (10) business days of written notice.

“Late File”: Any transaction for which (a) a required document or the complete compliance file, including the documents the Broker needs to issue the Commission Disbursement Authorization, is not uploaded within the deadline stated in the ICA, the Operations & Compliance Manual or Exhibit A, measured from the date the document was executed or required and not from the date of any Broker request; or (b) the Associate does not respond to a written Broker request for file completion within ten (10) business days; whichever occurs first. A document that must be executed before an event, such as a listing cancellation before a change of listing status, and that was not executed in time is a compliance matter under Section 8 of the Independent Contractor Agreement and not a Late File. Such a document is never dated earlier than the date it is actually signed. Fees applicable to a Late File are set forth in Exhibit A.

“Abandoned Commission”: The Associate’s remaining share of a commission retained by the Company at the Final Deadline set forth in Exhibit A. A transaction is not an Abandoned Commission before the Final Deadline.

“Complete File”: A transaction file in which: (a) all required documents are submitted; (b) all items on the applicable compliance platform checklist are marked complete; and (c) the file has been reviewed and approved by the Broker.

“Company Generated Lead”: has the meaning set forth in Section 9.

“Business Day”: has the meaning set forth in the Definitions section of the Independent Contractor Agreement.

## §46. COMMISSIONS & COLLECTIONS

The Company may withhold the amount of a commission actually in dispute pending resolution, subject to the notice and release requirements of Section 10. The undisputed portion is disbursed to the Associate in the ordinary course. Where collecting a commission requires the Broker’s intervention in a dispute with another brokerage, a client, or any other third party, the Company may retain the Collection Share set forth in Exhibit A, Section 42.1. The Collection Share never applies to a dispute between the Associate and the Company. The Broker will provide a written accounting of any Collection Share within ten (10) business days of deduction. The Company is not obligated to prosecute or sue to collect any commission, and Associates have no right to compel the Company to initiate collection or legal action.

## §47. COMPANY PROPERTY & RECORDS

Upon termination, the Associate must return Company property in accordance with the schedule set forth in Section 13. All Company materials, records, and data remain Company property at all times.

## §48. WIRE & FUNDS HANDLING

Associates are prohibited from providing, relaying, drafting, or transmitting wire or funds transfer instructions to any party. Violation constitutes a Material Breach and may result in immediate termination and personal liability for any resulting losses. Clients must obtain and verify wire instructions directly with the escrow or title agent using a known, verified phone number. Associates must never forward screenshots, PDFs, or images of wiring details. Any suspected wire fraud must be reported to the Broker in accordance with the reporting deadlines in Section 85 of this Manual. Associates must proactively warn every client in writing about wire fraud risks at or before contract execution.

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## §49. REGULATORY COMPLIANCE

All Associates must maintain compliance with: Florida Statute Chapter 475; Florida Administrative Code (FAC) Rules of FREC; DBPR requirements; MLS Rules and Regulations; NAR Code of Ethics; Fair Housing Act and Florida Fair Housing Act; and all federal, state, and local laws governing real estate transactions. Associates are responsible for maintaining an active Florida real estate license and must upload current license documentation to the Company's compliance platform within ten (10) business days of each renewal.

## §50. TRANSACTION DOCUMENTATION & FILE SUBMISSION

All transactions must be submitted to the Broker for review and approval in accordance with Section 475.5015, Florida Statutes, and the rules of the Florida Real Estate Commission, as amended. Associates must upload all transaction documents to the Company's designated compliance platform within forty eight (48) hours of execution, measured as stated in the Late File definition in Section 45. Required Transaction Documents include but are not limited to: executed listing agreements, buyer broker agreements, or tenant representation agreements; executed purchase and sale contracts or lease agreements; all amendments, addenda, and modifications; disclosure forms, including the Company's Affiliated Business Disclosure signed by each client on every transaction; inspection reports, repair requests, and responses; title commitments and HOA documents; closing statements; the Commission Disbursement Authorization (CDA) issued by the Broker, or equivalent; proof of earnest money deposit and disbursement records; and all written correspondence related to the transaction. Associates must ensure that transaction files are complete and submitted at least seven (7) days prior to closing for final Broker review.

Any modification to a transaction, including contract extensions, addenda, or notices affecting closing dates or escrow disbursement, must be executed by all parties prior to the original expiration date and submitted for review within the deadline stated above.

Consequences of NonCompliance: Failure to submit required documents may result in commission withholding until the file is complete, suspension of system access, a mandatory compliance review meeting, and termination of this Agreement for repeated or material violations. Release of withheld amounts after cure is governed by Section 8. Fees applicable to late or incomplete submissions are set forth in Exhibit A.

## §51. BROKER REVIEW & CONTRACT EXECUTION

All contracts, listing agreements, buyer broker agreements, leases, and amendments must be submitted to the Broker for review and approval, and must be uploaded to the compliance platform within the deadlines stated in Section 50. Documents the Associate is authorized to execute under Section 55 may be executed by the Associate without prior Broker approval and are submitted for review after execution. All other documents must be submitted to the Broker for review and approval before presentation or execution, unless the Associate holds an active Florida Broker license. Except as expressly authorized in Section 55, Associates may not bind the Company to any agreement, fee arrangement, commission split, or obligation without prior written Broker approval. Section 55 governs which documents an Associate may execute on behalf of the Company.

## §52. PROHIBITED CONDUCT

The following conduct is strictly prohibited and constitutes a Material Breach of the ICA:

- Misrepresentation, fraud, or dishonest dealing
- Discrimination or violation of fair housing laws
- Failure to disclose material facts or conflicts of interest
- Unauthorized practice of law
- Providing legal, tax, or accounting advice to a client rather than referring the client to a licensed attorney, certified public accountant, or other qualified professional
- Commingling of client funds or unauthorized use of trust accounts
- Advertising or marketing without required Broker identification and approval
- Solicitation of Company clients or Associates upon termination
- Repeated or willful failure to submit transaction documents or respond to Broker requests within required timeframes, after written notice. A single late submission is addressed under Section 8 and Exhibit A and is not a Material Breach.
- Engaging in real estate activity under another broker's license while affiliated with the Company
- Accepting, demanding, or retaining compensation in excess of the amount stated in an executed buyer brokerage agreement or listing agreement without a written amendment signed by all required parties
- Engaging in subject to, creative financing, foreclosure rescue, short sale negotiation on behalf of a seller, or similar distressed property transactions without prior transaction specific written approval from the Broker

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- Initiating or transmitting any call, text message, prerecorded message, automated dialing communication, or email campaign without documented prior express written consent where required by the Telephone Consumer Protection Act, the Florida Telephone Solicitation Act, or applicable do not call rules

## §53. TRANSACTION FILE REQUIREMENTS

All Associates must submit complete transaction files in accordance with Section 475.5015, Florida Statutes, and the rules of the Florida Real Estate Commission, as amended. The Broker maintains transaction records for at least the period required by Section 475.5015, Florida Statutes, and the rules of the Florida Real Estate Commission, as amended.

Submission Deadline: Document upload deadlines and the deadline for submitting a complete file before closing are set forth in Section 50.

## §54. RESERVED

This Section is reserved. Transaction documentation, submission deadlines, modification requirements, and the consequences of noncompliance are set forth in Section 50.

## §55. BROKER EXECUTION & REVIEW ADDENDUM

This Section governs which documents an Associate may execute on behalf of the Company and supersedes any contrary statement of signing authority elsewhere in this Agreement or any Incorporated Document.

### §55.1 Broker Signature Required for:

Commission Disbursement Authorizations (CDAs); Associate Personal Transactions; and any modification to the Independent Contractor Agreement, Exhibit A, or any Company generated agreement between the Company and the Associate.

### §55.2 Associate Signature Permitted

Associates are authorized to execute the following on behalf of the Company without Broker initial or signature: all standard Florida Realtors and NAR contracts (FR/BAR AS IS, FR/BAR Standard, CRSP-17, NABOR, Residential Lease, Vacant Land) and their addenda; Buyer Broker Agreements and Seller to Buyer's Broker Compensation Agreements; and Outside Broker Referral Agreements. Signature block format: Aari Realty LLC | [Associate's Full Name]. By signing on behalf of the Company, the Associate warrants that the form is a Florida Realtors, NAR, or Company provided template used unmodified, and that terms fall within the standard commission and compensation framework in Exhibit A.

### §55.3 Arbitration & Legal Disputes

Any arbitration, mediation, or litigation matter is handled by the Company's retained counsel. Associates may not sign, initial, or respond to any arbitration demand, mediation notice, subpoena, or legal correspondence on behalf of the Company. Associates may not execute or initial the arbitration provision within any real estate contract. The arbitration line on any FR/BAR, AS IS, CRSP, or other form is left blank. The arbitration provision is not initialed on behalf of the Company by any person, and neither the Associate nor the Broker completes it after the contract has been executed. All such items must be routed to the Broker within twenty four (24) hours of receipt.

### §55.4 Prohibited Conduct

Associates may not: alter or modify Company provided or state approved contract templates without written Broker approval; sign, initial, or negotiate arbitration, mediation, or litigation documents; bind the Company to fee arrangements that fall outside Exhibit A, except a fee permitted under Exhibit A, Section 42 (Fees Not Set by This Exhibit), which remains subject to the Broker's discretion; provide legal advice to clients or interpret contract provisions in dispute; or alter, complete, or add to any document after it has been executed by any party, including filling a blank field, correcting a date, or adding an initial. A document requiring change after execution must be corrected by written amendment or addendum executed by all parties.

### §55.5 Recordkeeping

All executed documents must be uploaded into the Company's compliance system within forty eight (48) hours of execution, measured as stated in the Late File definition in Section 45. No Commission Disbursement Authorization (CDA) will be issued until all required documents are uploaded, checklists are complete, and the file has been reviewed and approved by the Broker. Because the Commission Disbursement Authorization is the instruction under which the settlement agent disburses, a file that is not complete and approved before the CDA must be transmitted will delay or prevent disbursement at closing.

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### §55.6 Review Turnaround

The Broker will review submitted contracts within forty eight (48) hours during normal business hours (Monday through Friday, 9:00 AM to 5:00 PM Eastern Time, excluding holidays) for complete submissions. Incomplete submissions restart the review period upon resubmission.

## §56. FAIR HOUSING POLICY

Aari Realty LLC is committed to full compliance with federal, state, and local fair housing laws, including: Federal Fair Housing Act (Title VIII of the Civil Rights Act of 1968, as amended); Florida Fair Housing Act (Chapter 760, Florida Statutes); Americans with Disabilities Act (ADA); and all applicable local ordinances.

Prohibited Conduct: Associates may not: refuse to show, rent, sell, or negotiate with any person based on a protected class; provide different terms based on a protected class; steer clients toward or away from neighborhoods based on protected characteristics; make statements or advertisements that indicate a preference, limitation, or discrimination; or retaliate against any person for exercising fair housing rights.

Fair housing training requirements, including the deadline and the client representation gate, are set forth in Section 4.

## §57. ADVERTISING POLICY

All advertising and marketing by Associates must comply with Florida Statute §475.42, FREC Rule 61J2-10.025, and the rules of each MLS in which the Associate participates, as those requirements exist at the time of publication. Those rules define what constitutes an advertisement and what identification each advertisement must carry. The Associate is responsible for knowing the current requirement.

Any advertisement that promotes a property, a transaction, or the Associate's real estate services must identify Aari Realty LLC as the brokerage. The Associate's name may appear but must not be displayed more prominently than the Company name. This applies in every medium, including print, signage, websites and landing pages, email, online advertisements, social media posts, and video content.

Associates may not advertise in their own name without including the Company name, use a team name, DBA, or trade name without prior written Broker approval, or use misleading or deceptive language or images. Requests for team name or DBA approval must be submitted in writing through the Company's compliance platform. Silence does not constitute approval.

## §58. SOCIAL MEDIA POLICY

All social media activity by Associates must comply with applicable federal, state, and local laws, including advertising and marketing regulations, fair housing laws, antitrust laws, and the NAR Code of Ethics.

Associates are strictly prohibited from using unauthorized third party content in social media posts, including images, music, audio, videos, or copyrighted text. Associates assume primary liability for copyright violations.

Associates must protect client confidentiality on social media. Before posting any content that includes or references a client, Associates must obtain written permission.

## §59. SIGN BORROWING POLICY

Aari Realty provides open house signs and for sale signs to Associates for professional use. Signs remain Company property at all times.

Signs must be returned promptly after use (within 48 hours of event completion), stored properly during use to prevent damage, and lost or damaged signs must be reported immediately.

## §60. ERRORS & OMISSIONS ADDENDUM

The Company maintains Errors & Omissions (E&O) insurance covering the real estate brokerage activities of the Broker and affiliated Associates. Coverage is subject to policy limits, exclusions, and conditions. Current carrier, policy number, effective dates, coverage limits, and deductible amounts are maintained in the internal E&O Certificate on file with the Broker and updated at each policy renewal. Associates may request a current certificate of insurance by contacting the Broker directly.

The retention or deductible stated in the policy declarations in effect on the date the claim is first made against the Company is the amount referenced in Section 6. Associates may request a copy of the current declarations page and certificate of insurance from the Broker at any time, and the Broker shall provide it within three (3) business days of a written request.

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Exclusions: The Company's E&O policy contains exclusions set by the carrier, and those exclusions change at each renewal. The Associate must review the current policy and endorsements before assuming any activity is covered. As of the current policy period, coverage does not extend to intentional misconduct, fraud, or criminal acts; activities outside the scope of this Agreement or the Associate's Florida real estate license; claims arising after termination of this Agreement except as to transactions that closed during affiliation; transactions in which the Associate or a related party holds a beneficial ownership interest as buyer or seller, including approved Personal Transactions; activities as an escrow agent, title agent, or title abstractor; mortgage brokerage or lending services; syndication or property development; construction management; property management activities; appraisal of property in which the Associate holds an interest; and claims brought by an Associate against the Company arising out of the contractor relationship. This list is a summary and is not a substitute for the policy. The Associate is solely responsible for determining whether to obtain individual coverage for any activity the Company's policy does not reach.

Auto Insurance: Every Associate must at all times maintain personal auto insurance with liability limits of at least $100,000 per person / $300,000 per accident, and must name Aari Realty LLC as additional insured (or as additional interest where the carrier offers only that option). A certificate of insurance showing the Company must be provided to the Broker at onboarding, annually on renewal, and within five (5) business days of any policy change.

Claims Reporting: Associate must notify the Broker in writing within twenty four (24) hours of any demand, complaint, investigation, or threatened claim and must fully cooperate in the investigation and defense. Associates must fully cooperate with the Company's insurance carrier and legal counsel.

## §61. RECORD RETENTION & CONFIDENTIALITY

Aari Realty LLC maintains transaction records for at least the period required by Section 475.5015, Florida Statutes, and the rules of the Florida Real Estate Commission, as amended. Transaction document submission is governed by Section 50.

Associates must protect the confidentiality of client information, including financial information, personal identifying information, medical or health information, and transaction details.

## §62. RECRUITING REWARD POLICY

Eligibility: To receive the Recruiting Reward: (1) the referring Associate must remain Active and not subject to termination or Material Breach proceedings from the date of referral through payment; (2) the recruited Associate must be a newly affiliated licensed Florida sales associate; (3) the recruited Associate must complete onboarding and pay all required fees; and (4) the recruited Associate must remain Active and in Good Standing for at least thirty (30) consecutive days after affiliation.

Payment: The Recruiting Reward will be paid within the timeframe specified in Exhibit A following the date all eligibility requirements are satisfied. Payment will be issued via ACH, check, or other method designated by the Company. The reward is considered taxable income and is reported to the IRS on Form 1099-NEC when federal law requires.

Fee Amounts: The specific amount of the Recruiting Reward and all related fees are set forth in Exhibit A: Commission Fee Schedule.

## §63. COMPANY LEADS ADDENDUM

### §63.1 Lead Ownership and Assignment

Company Generated Leads are Company property. The Broker assigns leads and may reassign for missed service levels. Compensation on Company leads is allocated between the Associate and the Company in the fixed allocation set forth in Exhibit A, after referral fees and approved marketing deductions are taken off the top. The transaction fee is then deducted from the Associate's share. Marketing deductions must be preapproved in writing by Broker prior to lead assignment. Lead classification, including the written notice requirement at assignment, is governed by Section 9.

### §63.2 Service Expectations

The Associate must contact an assigned lead promptly, work the lead consistently, and keep the Broker informed of the lead's status without being asked. The Broker may reassign a lead where the Associate has not made contact, has stopped working the lead, or has not communicated status. Reassignment is governed by Section 34.

## §64. PERSONAL TRANSACTIONS ADDENDUM

### §64.1 Scope

This Addendum applies to any transaction in which the Associate has a direct or indirect ownership interest in real property, including purchases, sales, assignments, and acquisitions through an entity. Only a transaction that meets Section 28 of the CSA is a Personal Transaction for fees and Errors & Omissions coverage. Any other interest of the Associate or of a family member in the transaction must be disclosed to the Broker in writing before the contract is signed.

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### §64.2 Policy

Personal transactions are subject to the standard transaction fee and compliance review requirements as set forth in Exhibit A. No commission split applies to qualifying personal transactions, as further defined in the CSA. Full files and approvals are required. No discounts on compliance steps or documentation.

Personal Transactions are excluded from the Company's Errors & Omissions coverage. The Associate is solely responsible for any resulting liability and is strongly encouraged to obtain individual coverage before proceeding.

### §64.3 Disclosure Requirement

The Associate must disclose to the Broker any transaction covered by this Addendum prior to contract execution. The Associate's status as a real estate licensee must be disclosed in the purchase contract or other applicable transaction documents.

## §65. MLS & BRAND STANDARDS ADDENDUM

The Associate must comply with the listing submission, cooperation, and public marketing rules of each MLS in which the Associate participates, as those rules exist at the time of the transaction. The applicable MLS defines what constitutes public marketing, what triggers the submission obligation, and the deadline that applies. Those definitions and deadlines vary by board and are published by each board. The Associate is responsible for knowing and following the current rule of every board in which the Associate participates.

Where a seller directs that a property not be submitted to or publicly marketed through an MLS, the Associate must satisfy that MLS's own requirements for the election before any advertising of the property occurs. Some boards require a signed owner agreement or written notice to be filed with the board itself, and a document held only in the Company's file does not satisfy that requirement. The Associate must complete the board's process and upload proof of the board filing, together with the seller's written instruction, to the compliance platform.

Any change to the listed price or to any other term of the listing agreement requires written seller authorization before the change is made. The Associate must then update the MLS within the deadline set by the applicable board, and must ensure the price published in the MLS matches the price stated in the current listing agreement or modification at all times. Where a modification is intended to take effect on a future date, that effective date must be stated in the modification itself.

**Company file completion (not an MLS deadline):** the fully executed listing agreement must be uploaded to the Company's compliance platform within forty eight (48) hours of execution.

**Broker notice:** any MLS inquiry, citation, fine, complaint, or disciplinary communication must be reported to the Broker within twenty four (24) hours.

**Fine responsibility:** any fine, penalty, or sanction imposed by any MLS as a result of the Associate's violation is the Associate's sole financial responsibility, and the Company may offset amounts it pays on the Associate's behalf against future commission disbursements. Offsets under this Section are subject to the caps, notice requirements, and release deadlines stated in Section 7, Section 10, and Section 72, as applicable to the underlying obligation.

Advertising and broker identification requirements are governed by Section 57.

## §66. TEAM ADDENDUM

### §66.1 Team Lead Responsibilities

Team lead is responsible for coordinating team activities, monitoring branding compliance, and assisting the Broker in ensuring team members follow Company policies. The Broker retains all supervisory responsibility under Florida law.

### §66.2 Team Splits

Intra team splits must be on file (signed and stored in the team folder) before first shared deal.

### §66.3 Roster Management

Submit roster changes within 48 hours. Update signage, websites, and marketing materials to reflect roster changes within seven (7) business days of the roster change effective date.

## §67. CDA WORKFLOW ADDENDUM

### §67.1 CDA Preparation and Purpose

The Commission Disbursement Authorization (CDA) is the written instruction the Company provides to the settlement agent directing how commission is to be disbursed at closing. The CDA is prepared, signed, and transmitted by the Broker or Company staff acting at the Broker's direction. Associates do not create, edit, attach, or transmit a CDA, and any CDA issued by an Associate is void.

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A CDA is issued on every transaction in which the Company is entitled to compensation.

In addition, a CDA must include conflict disclosure where: (a) the Associate or a related party has any ownership interest in the property; (b) team member representation exists; (c) any family relationship or financial interest exists between transaction parties; or (d) any other conflict of interest exists as required by FREC rules or Company policy.

The Associate agrees to sign any disbursement instruction, authorization, or closing statement acknowledgment the Company or the settlement agent presents in connection with a CDA issued under this Section. If funds are disbursed to the Associate in error or in an amount exceeding the Associate's share, the Associate shall return the excess to the Company within five (5) business days of receipt.

**§67.2 Disbursement Method**

Commission may be disbursed by either of the following methods:

(a) **Company Disbursement.** The settlement agent disburses the full commission to Aari Realty LLC. The Company then disburses the Associate's share in accordance with §67.3. This is the default method.

(b) **Split Disbursement at Closing.** The settlement agent disburses the Company's fees and charges to Aari Realty LLC and the Associate's net share directly to the Associate at closing, as directed by the CDA.

**Election.** An Associate may elect split disbursement by creating a task assigned to the Broker in the Company's compliance platform requesting it. The election is recommended after the inspection period has expired and must be submitted no later than seven (7) days before the scheduled closing date, so that it can be included in the CDA.

**Conditions.** Split disbursement is available only where: (i) the transaction file is complete and compliant and has been approved by the Broker before the CDA is transmitted; (ii) the Associate is in Good Standing; (iii) no offset, hold, or outstanding balance applies to the transaction or the Associate; and (iv) the settlement agent accepts split disbursement instructions. Where any condition is not met, the transaction proceeds under Company Disbursement and the Broker will notify the Associate.

The Broker retains sole discretion to direct Company Disbursement on any transaction where an offset, compliance issue, or dispute affects the amount payable. Election of split disbursement does not waive any Company right of offset, and any amount owed to the Company that is not collected at closing remains due and may be offset against future disbursements.

**§67.3 File Completion and Commission Payment**

Disbursement timing, including any permitted extension, is governed by Section 7.

**§67.4 Compensation Received Directly**

All compensation for brokerage services, including any retainer, cancellation fee, or other fee paid by a client, is payable only to Aari Realty LLC. An Associate who receives any such compensation directly from a client or any other person shall deliver it to the Company by the end of the next business day following receipt. Once the Company receives it, the Company pays the Associate the amount set forth in Exhibit A for that payment. Failure to deliver the compensation within that time is a Material Breach, and the Company may offset the full amount received against any commission or other amount payable to the Associate until it is delivered. This Section does not reduce or forfeit any share the Associate has earned.

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## §68. BILLING ADDENDUM

### §68.1 Recurring Fees

All recurring fees applicable to Associates, including the Monthly Brokerage Fee and the annual E&O + Compliance Fee, are nonrefundable, except as stated in the Effective Date definition in the ICA, and are charged to the Associate's card on file through the Company's payment processor. A Monthly Brokerage Fee charged for a billing cycle in which the Associate terminates is not refunded or prorated. The E&O + Compliance Fee, in the amount set forth in Exhibit A, is charged when the Associate signs this Agreement, and the Associate's card is saved on file at that time. The first Monthly Brokerage Fee is charged on the Associate's Start Date. The Monthly Brokerage Fee is then charged on that same day of each month; in a month without that day, it is charged on the last day of the month. The E&O + Compliance Fee renews on each Onboarding Anniversary. For an Associate already affiliated with the Company when signing the ICA dated October 13, 2026, nothing is charged at signing; the Associate saves a card on file, the Monthly Brokerage Fee is charged on the day of the month on which the Associate first affiliated with the Company, beginning the next time that day occurs, and the E&O + Compliance Fee renews on each anniversary of that first affiliation date. **For a new or returning Associate, only the E&O + Compliance Fee is charged at signing**; the Monthly Brokerage Fee begins on the Start Date. Any fee already past due is charged when the card is saved. After an approved plan change, the Monthly Brokerage Fee for the new plan is charged beginning on the Associate's next monthly billing day. A Monthly Brokerage Fee the Associate has prepaid is not charged again; the next charge falls on the first billing day after the prepaid period. When the Broker moves the Associate's license to Aari Referrals LLC, the Monthly Brokerage Fee ends with the billing cycle in which the license moves and is not charged for any later month. Transaction fees and other fees tied to a transaction are deducted from commission at closing, as set forth in Exhibit A, including the rules in Exhibit A, Section 39.2 on charging the fee to a client and on any amount above it. All fee amounts are governed exclusively by Exhibit A: Commission Fee Schedule, as amended from time to time.

### §68.2 Payment Enforcement

Failed payments may result in late payment fees and returned payment fees, each as set forth in Exhibit A. Those fees apply on the terms stated in Exhibit A.

Before suspending system access, changing the Associate to Inactive status, withholding commission, or terminating this Agreement for nonpayment, the Company shall provide written notice of the failed payment and allow five (5) business days from the date of notice for the Associate to cure. Where the Associate cures within that period, no suspension, status change, withholding, or termination occurs under this Section.

Where the Associate does not cure within five (5) business days of notice, the Company may suspend system access, change the Associate to Inactive status, withhold commission subject to the limits in Section 7 and Section 25, or terminate this Agreement.

## §69. TERMINATION ADDENDUM

### §69.1 Property Return

Company property return deadlines are set forth in Section 13.

### §69.2 File Completion.

For transactions that closed before the termination date, the departed Associate must deliver all final documents and complete those files within ten (10) business days of termination. Files not completed within this timeframe are Late Files and subject to the file completion fees and the Final Deadline in Exhibit A. Transactions still pending on the termination date are governed by the Departure Share in Exhibit A, Section 39.4, and the file completion fees and Final Deadline in Exhibit A, measured from the closing date.

### §69.3 Financial Settlement.

Pending payouts processed per ICA and CSA order of precedence.

## §70. AARI REFERRALS LLC REFERRAL COMPENSATION

The referral fee paid to Aari Referrals LLC on Referral Sourced Transactions, the allocation that follows it, and the Referral Administrative Fee on incoming referrals paid to Aari Realty LLC Associates are set forth in Exhibit A: Commission Fee Schedule. The compensation of Aari Referrals LLC referral associates is governed by the Aari Referrals LLC Referral Associate Agreement and its fee schedule. This Manual does not restate referral percentages or amounts.

## §71. SELLER IDENTITY VERIFICATION

### §71.1 Verification Trigger.

The Associate must complete the Company's seller identity verification protocol before entering any listing into the MLS or publicly marketing any property where one or more of the following applies:

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(a) the property is vacant, unimproved, or unoccupied;

(b) the seller is not physically located in Florida;

(c) the seller declines an in person or live video meeting;

(d) title reflects no mortgage, lien, or other recorded encumbrance;

(e) the seller was self referred or solicited the Associate without a prior personal or professional relationship;

(f) the seller requests unusual speed, insists on wire only proceeds, or offers the property materially below market value.

**§71.2 Record Owner Signature.**

No property may be entered into the MLS or marketed in any manner without a fully executed listing agreement signed by all record owners as reflected in the county property appraiser and official records. The Associate must confirm record ownership independently and document the source in the transaction file.

**§71.3 MLS Gate.**

Verification and record owner confirmation must be documented in the transaction file before MLS entry. The Broker may remove any listing that does not have completed verification on file.

**§71.4 Approved Method.**

Verification must include all of the following, documented in the transaction file: (a) a government issued photo identification for each record owner, compared against the name reflected in the county property appraiser and official records; (b) a live video meeting or in person meeting with each record owner in which the identification is visible and the person presenting it is the person pictured; and (c) independent confirmation of the seller's contact information through the county property appraiser, tax collector, or official records, rather than contact information supplied by the seller.

The Broker may designate a third party identity verification service in writing, in which case the Associate must use that service. Absent a written designation, the requirements of this Section apply. The Associate must not substitute an alternate method without written Broker approval.

**§71.5 No Warranty.**

Completion of the verification protocol reduces risk but does not constitute a representation, warranty, or guarantee of the identity, authenticity, or authority of any seller. The Associate remains responsible for exercising reasonable diligence.

**§71.6 Escalation.**

Any indication of possible seller impersonation must be reported to the Broker immediately and before any further action on the listing.

## §72. INDEMNIFICATION & DEFENSE ADDENDUM

**§72.1 Indemnification.**

To the fullest extent permitted by law, Associate agrees to indemnify, defend, and hold the Company harmless from and against any and all claims, demands, actions, damages, losses, liabilities, fines, penalties, and costs arising out of or related to: any act, omission, negligence, misrepresentation, or misconduct by Associate in the performance of real estate services; any failure by Associate to comply with federal, state, or local laws, FREC rules, MLS regulations, or Company policies; any unauthorized promises, guarantees, or agreements made by Associate to clients, cooperating brokers, or third parties; or any disputes, penalties, or claims related to incomplete, inaccurate, or untimely documentation. This indemnification does not apply to claims arising solely from the Company's independent negligence or willful misconduct.

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**§72.2 Defense, Insurance, and Offsets.**

The Company, or its E&O carrier, may assume control of the defense and selection of counsel for any covered matter. Associate must notify the Broker in writing within twenty four (24) hours of any demand, complaint, investigation, or threatened claim and must fully cooperate in the investigation and defense. The Company may withhold commissions to cover a claim under this Section as follows. For a matter covered by the Company's E&O policy, the amount withheld shall not exceed the deductible or self insured retention stated in the E&O policy declarations in effect on the date the claim is first made against the Company, consistent with Section 6 of the ICA. For a matter the E&O policy does not cover, including a claim the carrier denies or excludes, the amount withheld shall not exceed the documented actual losses paid or reserved by the Company that are attributable to the Associate's conduct, under the indemnification in Section 72.1. Attribution is determined as set forth in Section 25. Any withholding must be documented in writing to the Associate within five (5) business days of the initial withholding, stating the underlying claim or matter, the amount withheld, and the basis for the amount. The Broker shall review the withholding on each subsequent commission disbursement and release any portion that exceeds the then current calculated amount. If no claim, demand, investigation, or communication from an insurer or third party has been received for ninety (90) consecutive days, the entire withheld amount shall be released. In addition, and regardless of claim activity, any amount withheld under this Section shall be released in full if the underlying claim, demand, or investigation has not resulted in a filed lawsuit, arbitration demand, or written settlement demand within one (1) year of the date the withholding was initiated, unless the Broker provides written notice before that date stating the specific reason the withholding must continue and the expected resolution timeframe. Upon final resolution, the Company will reconcile and remit any excess amounts within thirty (30) days of final resolution, or within sixty (60) days if litigation is pending at the time of resolution.

**§72.3 Survival.**

The indemnity, defense, and hold harmless obligations survive termination of Associate's affiliation with the Company.

## §73. POST DEPARTURE COMPENSATION ADDENDUM

**§73.1 Procuring Cause.**

Under Florida law, all procuring cause rights belong to the brokerage, not the sales associate. The Company retains all procuring cause rights for any buyer or seller introduced to real property through the Company, regardless of whether the Associate remains affiliated with the Company.

**§73.2 Protection Period.**

Any protection period contained in a Buyer Brokerage Agreement, Listing Agreement, or compensation agreement survives the Associate's departure from the brokerage. The Company retains full compensation rights for any contract, offer, or closing involving a buyer or seller introduced through the Company during the protection period.

**§73.3 Post Departure Compensation.**

Compensation on a transaction in which the Associate departs the Company before closing is the Departure Share set forth in Exhibit A, Section 39.4, paid on the conditions and timing stated in the Departure Share provision in Section 7 of the Independent Contractor Agreement. The Associate's prior commission plan determines only the share that is divided under that Section. Transactions originating from a Company Generated Lead remain governed by Section 7 of the Independent Contractor Agreement.

**§73.4 Company Paid First.**

All compensation due to the Company must be paid directly to Aari Realty LLC. Departing Associates receive their portion only after the Company receives funds in full, confirms accurate disbursement, completes audit compliance, and processes internal accounting.

**§73.5 Prohibition Against Interference.**

Departing Associates may not interfere with the Company's compensation status, instruct title companies, or attempt to influence representation. Any attempt to manipulate, alter, backdate, or rewrite documents to bypass the Company's rights is strictly prohibited.

**§73.6 Survival.**

This Addendum remains binding after the Associate's departure. The Company's rights to compensation survive termination of the ICA.

## §74. FORCE MAJEURE

Force majeure events, the extension of affected deadlines, and the notice and documentation requirements are governed by Section 17. The Broker may extend deadlines beyond the period provided in Section 17 in the Broker's discretion where circumstances warrant.

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## §75. DISPUTE RESOLUTION & APPEALS

Associates who wish to contest any enforcement decision, fee assessment, or suspension must submit a written appeal to the Broker within thirty (30) calendar days of receiving notice of the decision. The appeal must include: a clear statement of the decision being appealed; the Associate's position and supporting facts; and any documentation supporting the appeal.

The Broker will review and respond in writing within a reasonable time. The Broker's decision on appeal is final for internal administrative purposes, as stated in Section 15 of the ICA; any further dispute follows the Mediation First process in that Section. Nothing in this Section waives any claim the Associate may have under this Agreement or applicable law, or alters any limitations period established by law. Filing an appeal does not toll, extend, or suspend any other deadlines or obligations under this Manual, the ICA, or applicable law unless the Broker grants a specific written extension.

## §76. ESCROW DEPOSITS AND CLIENT FUNDS

### §76.1 No Brokerage Escrow.

Aari Realty LLC maintains no escrow or trust account and does not accept, hold, or disburse client funds of any kind.

### §76.2 Absolute Prohibition.

The Associate must never accept, receive, hold, transport, deposit, endorse, or take possession of any earnest money deposit, rent payment, security deposit, option fee, or other client funds in any form, including cash, check, money order, wire, or electronic payment. All funds must move directly from the client to the escrow agent, title company, or closing attorney designated in the contract.

### §76.3 Delivery Instructions.

The Associate must provide the client with the designated escrow agent's delivery instructions in writing and must confirm the client understands that funds go directly to that agent.

### §76.4 Written Verification Required.

The Associate must obtain written confirmation of receipt from the escrow agent and upload it to the compliance platform within forty eight (48) hours of the deposit due date under the contract. Written confirmation must identify the escrow agent, the amount received, and the date received. A portal screenshot, image, or verbal confirmation is not acceptable.

### §76.5 Missing or Late Deposits.

If written confirmation is not received by the deposit deadline, the Associate must notify the Broker the same business day and issue the applicable Escrow Deposit Receipt Verification request consistent with Rule 61J2-14.008, Florida Administrative Code.

### §76.6 Performance Hold.

The Associate must not proceed with further contract performance, including scheduling inspections, waiving contingencies, or delivering notices that depend on the deposit, until the deposit is verified or the Broker directs otherwise in writing.

### §76.7 Material Breach.

Violation of Section 76.2 or Section 76.5 is a Material Breach and may result in immediate termination and reporting to DBPR. Violation of any other provision of this Section is a compliance matter addressed under Section 8 and may result in termination where repeated or willful.

## §77. FEDERAL REPORTING DESIGNATIONS

### §77.1 No Independent Filing Authority.

The Associate has no authority to file any federal report on the Company's behalf.

### §77.2 Designation Prohibited.

The Associate must not sign, initial, accept, or agree to any designation agreement, reporting assignment, or written arrangement that places a federal reporting obligation on Aari Realty LLC or on the Associate. Any such request from a title company, closing agent, attorney, or other party must be forwarded to the Broker unanswered. Unauthorized acceptance is a Material Breach.

### §77.3 Cooperation.

Where a federal reporting or anti money laundering requirement applies to a transaction, the Associate must cooperate with the Broker, settlement agent, and counsel in gathering the ownership or source of funds information required.

ASSOCIATE INITIALS _____

## §78. PERSONAL ASSISTANTS

### §78.1 Definitions.

Licensed Assistant: an assistant holding an active Florida real estate license.

Unlicensed Assistant: an assistant who does not hold a real estate license and who performs administrative support only.

Virtual Assistant: an assistant, licensed or unlicensed, performing services remotely. A Virtual Assistant is subject to the same restrictions as an on site assistant based on license status.

### §78.2 Registration Required.

The Associate must register any assistant with the Broker in writing before the assistant performs any function, identifying the assistant's full legal name, license status and license number if applicable, and scope of duties. The Associate must provide the Broker with a copy of the written agreement between the Associate and the assistant.

### §78.3 Permitted Activities.

An Unlicensed Assistant may:

(a) answer and route telephone calls and take messages;

(b) enter and update listing data in the MLS at the direction of the Associate;

(c) compile and assemble transaction documents, correspondence, and file materials at the direction of the Associate, without selecting, drafting, or modifying any contract term;

(d) perform filing, copying, scanning, and clerical work;

(e) obtain documents from public records;

(f) act as a courier;

(g) place and remove signs and lockboxes;

(h) prepare marketing materials, subject to Broker approval before publication;

(i) schedule inspections and routine appointments;

(j) greet visitors at an open house, distribute materials prepared by the Associate, and refer all questions to the Associate.

### §78.4 Prohibited Activities.

An Unlicensed Assistant must not:

(a) show property or accompany a prospect through a property;

(b) answer any question about a listing, including price, square footage, condition, or age;

(c) discuss or explain any contract, brokerage agreement, financing, title, or closing matter;

(d) negotiate any term, including compensation, commission splits, or referral fees;

(e) solicit or contact prospective buyers, sellers, landlords, or tenants;

(f) present or negotiate offers;

(g) obtain, renew, or discuss any listing, buyer brokerage, or property management agreement;

(h) receive any compensation contingent on a transaction.

### §78.5 Licensed Assistants.

A Licensed Assistant may perform licensed activity only while registered with Aari Realty LLC, supervised by the Associate and the Broker, and subject in full to the ICA, this Manual, and all Incorporated Documents.

### §78.6 System Access.

Any assistant with access to Company systems, the compliance platform, MLS credentials, lockbox or key access, or client files must be identified to the Broker in advance and is subject to the Confidentiality provisions in Section 5 of the ICA and the credential security requirements in Section 91.7. The Associate must not share login credentials with any assistant. Where a platform permits sub accounts, the assistant must be issued a separate credential.

ASSOCIATE INITIALS _____

**§78.7 Employment and Cost.**

The Associate is the assistant's sole employer or contracting party and bears all compensation, tax, withholding, and insurance responsibility. The Company has no obligation to any assistant.

**§78.8 Broker Authority.**

The Broker may refuse, restrict, or revoke any assistant's registration, system access, or presence at any time and for any reason.

**§78.9 Responsibility and Indemnification.**

The Associate is responsible for supervising the assistant and for ensuring the assistant does not engage in activity requiring a license. The Associate indemnifies the Company for all claims, fines, penalties, and costs arising from the assistant's conduct. This obligation survives termination.

## §79. PAYMENT TO A CORPORATE ENTITY

**§79.1 Election.**

The Associate may elect to receive compensation through a Professional Association (P.A.), Limited Liability Company (LLC), or Professional Limited Liability Company (PLLC).

**§79.2 Entity Name.**

The entity name must contain the Associate's full legal licensed name as it appears on the Associate's Florida real estate license, consistent with FREC requirements.

**§79.3 DBPR Amendment Required.**

The Associate must amend their license record with DBPR to reflect the entity before any compensation is paid to the entity. Formation with the Florida Division of Corporations alone does not satisfy this requirement.

**§79.4 Form W-9.**

The Associate must provide a completed IRS Form W-9 reflecting the entity's exact legal name and Taxpayer Identification Number.

**§79.5 Verification Gate.**

No commission will be disbursed to any entity until the Broker has verified the entity designation on the Associate's DBPR license record and has a matching Form W-9 on file.

**§79.6 Reversion.**

If the entity's status lapses, the entity is administratively dissolved, or the DBPR license record no longer matches the entity, compensation reverts to the Associate individually until the discrepancy is corrected. Payment will not be held pending correction.

**§79.7 Notice of Change.**

The Associate must notify the Broker in writing within ten (10) business days of any change to the entity's name, status, ownership, or Taxpayer Identification Number.

**§79.8 Associate Responsibility.**

The Associate is solely responsible for forming and maintaining the entity in good standing and for all tax, legal, and regulatory consequences of the election.

## §80. PROPERTY MANAGEMENT AND RENTALS

**§80.1 No Property Management Services.**

Aari Realty LLC does not provide property management services.

**§80.2 Definition.**

Property management includes rent collection, holding or managing security deposits, maintenance coordination, repair ordering, vendor payment, tenant supervision, guest communication, cleaning coordination, escrow handling, tax or tourist development tax remittance, and any ongoing management of a property after lease execution.

**§80.3 Permitted Activity.**

The Associate may list residential and commercial property for lease and procure tenants under Aari Realty LLC, using Company approved or Florida Realtors approved lease listing forms, with all activity conducted in the name of Aari Realty LLC.

ASSOCIATE INITIALS _____

**§80.4 Prohibited Activity.**

Property management is licensed brokerage activity under Section 475.01(1)(a), Florida Statutes. While affiliated with Aari Realty LLC, the Associate must not perform any property management function, as defined in Section 80.2, in any form: not under the Aari Realty LLC name or license, not under the Associate's own name, not through a spouse or family member, and not through any business entity the Associate owns, controls, or is affiliated with. Performing property management without operating through a properly licensed brokerage is unlicensed activity under Section 475.42, Florida Statutes, and creates personal statutory liability for the Associate that the Company does not defend or indemnify. Two carve outs apply. First, an Associate may manage real property the Associate owns strictly for the Associate's own account, subject to the conditions in Section 80.7. Second, the Broker may approve in writing a specific property management engagement that runs through Aari Realty LLC with the Broker as the signatory to the property management agreement; absent such written approval, no property management engagement may be conducted under Aari Realty LLC or attributed to Aari Realty LLC.

**§80.5 Commission Timing.**

Commission on a lease is due to Aari Realty LLC in full at or before tenant occupancy and not on a monthly installment basis, unless the Broker approves otherwise in writing.

**§80.6 Funds.**

Rents, security deposits, prepaid rent, pet fees, application fees, and any other tenant funds are trust funds under Rule 61J2-14, Florida Administrative Code, and Chapter 83, Florida Statutes, including Section 83.49 governing security deposits. The Company holds no trust account for tenant funds and does not accept, receive, hold, disburse, or route any tenant funds under any circumstance. The Associate must not accept, receive, hold, transport, deposit, endorse, or route any tenant funds. Section 76 applies in full. Any transaction requiring trust fund handling of tenant money must be conducted by a separately licensed and insured property management entity outside the Aari Realty LLC brokerage relationship.

**§80.7 Associate Owned Rentals.**

An Associate managing real property the Associate owns for the Associate's own account does so outside the scope of this Agreement and outside the Company's license and insurance. The following conditions apply and are a condition of the Section 80.4 carve out. The Associate must not (a) use Aari Realty LLC branding, logos, forms, systems, contacts, or letterhead in connection with the own rental management; (b) route any funds from any tenant, prospective tenant, vendor, or third party through Aari Realty LLC; (c) accept compensation from any third party for services performed on the own rental; or (d) hold the Associate out to any tenant, vendor, or third party as a property manager, licensed or otherwise, unless the Associate holds a separately valid registration authorizing that representation. Advertising the own rental must comply with Florida advertising law and must not imply Aari Realty LLC involvement unless the property is listed with the Company under Section 80.3.

**§80.8 Material Breach.**

Violation of Section 80.4, Section 80.6, or Section 80.10, or any finding of unlicensed activity under Section 475.42, Florida Statutes, arising from conduct addressed in this Section is a Material Breach and grounds for immediate termination and reporting to DBPR. Violation of any other provision of this Section is a compliance matter addressed under Section 8 and may result in termination where repeated or willful.

**§80.9 Compensation Flow.**

All compensation the Associate earns from leasing, tenant procurement, or any brokerage adjacent service in the residential or commercial rental space flows through Aari Realty LLC under Section 7 of the Independent Contractor Agreement and under Exhibit A. The Associate must not accept direct payment from any owner, tenant, prospective owner, prospective tenant, vendor, or third party for any brokerage adjacent service. Direct payment in violation of this Section is a Material Breach under Section 80.8.

**§80.10 Community Association Management.**

Community association management is a separately licensed activity under Chapter 468 Part VIII, Florida Statutes, administered by the Department of Business and Professional Regulation. A Florida real estate license does not authorize the practice of community association management. The Associate must not perform community association management services, hold the Associate out as a community association manager, or accept compensation for community association management services unless the Associate holds a current active community association manager license and any such activity is conducted outside the brokerage relationship with Aari Realty LLC. Any community association management engagement the Associate undertakes must be disclosed to the Broker in writing at the outset of the engagement.

**ASSOCIATE INITIALS** _____

## §81. DISTRESSED PROPERTY AND CREATIVE FINANCING

### §81.1 Approval Required.

The Associate must not market, negotiate, present, or close any of the following without transaction specific written Broker approval obtained before any offer is presented:

(a) subject to transactions where existing financing remains in place after transfer;

(b) wraparound mortgages;

(c) seller financing;

(d) lease option or lease purchase arrangements;

(e) assignment of contract;

(f) short sale, foreclosure rescue, loan modification, or mortgage assistance arrangements.

To request approval, the Associate must submit a written request to the Broker identifying the property, the parties, the transaction structure proposed, and the reason the structure is being used. The Broker will respond in writing. Approval is transaction specific, must be obtained before any offer is presented, and may be granted or withheld in the Broker's sole discretion. Silence does not constitute approval.

### §81.2 Regulatory Compliance.

When marketing to or soliciting homeowners in default, foreclosure, or financial distress, the Associate must comply with the Mortgage Assistance Relief Services Rule, 12 CFR Part 1015, and the Florida Deceptive and Unfair Trade Practices Act, Section 501.201 et seq., Florida Statutes.

### §81.3 Conditions of Approval.

Broker approval is conditioned on written evidence in the transaction file that:

(a) the seller has been advised in writing to consult an attorney;

(b) any existing lender and loan has been disclosed, and the due on sale risk has been disclosed in writing to both parties;

(c) the buyer's identity and source of funds are documented;

(d) for an assignment of contract, the assignment fee is disclosed on the settlement statement.

### §81.4 Advertising Prohibition.

The Associate must not advertise or publish "we buy houses," "cash offer," "any condition," or substantially similar wholesaler style messaging under the Aari Realty LLC name, license, or branding, or in any advertisement identifying the Associate as affiliated with the Company.

### §81.5 Violation.

Engaging in a transaction described in Section 81.1 without prior written Broker approval, or failing to satisfy any condition of an approval under Section 81.3, is grounds for immediate termination. Violation of any other provision of this Section is a compliance matter addressed under Section 8 and may result in termination where repeated or willful.

## §82. COMMISSION CLAWBACK AND DISGORGEMENT

### §82.1 Reimbursement Obligation.

If any commission previously disbursed to the Associate is later reduced, refunded, reversed, disputed, rescinded, or required to be returned for any reason, including transaction cancellation, escrow or closing agent error, commission dispute, court order, settlement, arbitration award, regulatory action, lender clawback, wire fraud, or misrepresentation, the Associate is responsible for reimbursing the Company the full affected amount.

### §82.2 Offset and Payment.

The Company may offset the amount against any future commission or other funds payable to the Associate. If offsets are insufficient, the Associate must remit payment within ten (10) business days of written notice. Offsets under this Section are subject to the caps, notice requirements, and release deadlines stated in Section 7, Section 10, and Section 72, as applicable to the underlying obligation.

ASSOCIATE INITIALS _____

**§82.3 Fraudulent or Void Transactions.**

If a transaction is determined to be fraudulent, void, voidable, or rescinded, any commission previously paid on that transaction was never earned and must be returned in full upon written demand. The offset limitations in Section 7 of the Independent Contractor Agreement do not apply to amounts recoverable under this subsection.

**§82.4 No Duty to Pursue Third Parties.**

The Company is not obligated to pursue collection from any third party before seeking reimbursement from the Associate.

**§82.5 Enforcement Costs.**

In any action to collect amounts owed under this Section, whether brought by the Company or the Associate, the prevailing party is entitled to recover reasonable attorneys' fees and collection costs.

**§82.6 Survival.**

This Section survives termination and applies regardless of the Associate's affiliation status at the time the reversal, reduction, or determination is discovered.

## §83. LISTING TRANSFER ON DEPARTURE

**§83.1 Company Property.**

All listing agreements, buyer brokerage agreements, and representation agreements are the property of Aari Realty LLC.

**§83.2 Transfer Request.**

Upon termination, the Associate may submit a written request to transfer active listings to the Associate's new brokerage. Approval is at the Broker's sole discretion and requires written seller consent.

**§83.3 Transfer Execution.**

Where a transfer is approved by the Broker in writing, the transfer takes effect on the date the Broker's written approval is issued or on such later date as the approval specifies. No fee applies to the transfer of a listing under this Section.

**§83.4 Listings Not Transferred.**

Where a listing is not transferred, whether because no transfer request is submitted, the request is not approved, seller consent is not obtained, or the transfer otherwise does not take effect, the listing remains with Aari Realty LLC and may be reassigned to another Associate. No compensation is owed to the departing Associate on the eventual closing of a listing that is not transferred.

**§83.5 Pending Transactions.**

Any transaction under a fully executed contract at the time of termination remains under Aari Realty LLC supervision and control through closing, regardless of whether any related listing is transferred, unless the Broker releases it to the departing Associate's new brokerage under Exhibit A, Section 39.4. Compensation is governed by the ICA, the Commission Structure Addendum, and the Post Departure Compensation Addendum.

**§83.6 Anti Evasion.**

Any attempt to cancel, withdraw, terminate, or allow the expiration of a listing agreement or buyer brokerage agreement for the purpose of avoiding Company compensation rights or the listing transfer process, followed by relisting or re representing the same client through another brokerage, constitutes interference with Company business relationships and a Material Breach. Aari Realty LLC retains full compensation rights under any protection period contained in the original agreement.

**§83.7 Code of Ethics.**

The Associate acknowledges the obligations of Standard of Practice 16-20 of the NAR Code of Ethics regarding conduct upon changing brokerage affiliation.

## §84. TELEPHONE, TEXT, AND ELECTRONIC SOLICITATION

**§84.1 Compliance Required.**

The Associate must comply with the Telephone Consumer Protection Act, 47 U.S.C. 227, the CAN-SPAM Act, the Florida Telemarketing Act, the Florida Do Not Call provisions of Section 501.059, Florida Statutes, and all FCC and FTC regulations governing telephone, text, and electronic solicitation.

ASSOCIATE INITIALS _____

**§84.2 Do Not Call Scrubbing.**

The Associate must scrub every number against the federal Do Not Call Registry and the Florida Do Not Call list before any solicitation call or text, and must retain evidence of the scrub.

**§84.3 Internal Do Not Call List.**

The Associate must maintain an internal do not call list, honor every opt out request promptly, and document the date and method of each opt out.

**§84.4 Calling Hours.**

The Associate must place solicitation calls or texts only within the hours permitted by applicable federal and Florida law, as amended, in the recipient's time zone.

**§84.5 Identification.**

The Associate must identify themselves by the name on their license and must identify Aari Realty LLC on every solicitation call and in every solicitation text or email.

**§84.6 Consent.**

Where prior express written consent is required, the Associate must obtain it and retain written evidence of it for five (5) years. Consent records must be produced to the Broker on request.

**§84.7 Established Business Relationship.**

An established business relationship exemption may be relied on only where the relationship, its basis, and the date it arose are documented in writing and retained by the Associate. The documentation must be produced to the Broker on request. Where the Broker designates a system of record in writing, the Associate must document the relationship in that system.

**§84.8 Automated Platforms.**

The Associate must not use any automatic telephone dialing system, predictive dialer, ringless voicemail, prerecorded or artificial voice message, or mass or bulk SMS platform without prior written Broker approval.

**§84.9 Contact Lists.**

The Associate must not import, purchase, rent, scrape, or upload any contact list the Associate did not personally generate with documented consent.

**§84.10 Third Party Tools.**

The Associate is solely responsible for the compliance of every CRM, dialer, texting platform, lead vendor, or automation tool the Associate uses, including any tool the Company makes available. Availability of a tool through the Company is not approval of any particular use of it.

**§84.11 Liability.**

The Associate indemnifies the Company for all claims, statutory damages, penalties, and costs arising from the Associate's violation of this Section. This obligation survives termination.

## §85. REPORTING DEADLINES

**§85.1 Single Schedule.**

This Section is the master schedule for reporting incidents to the Broker. Deadlines stated for a specific obligation elsewhere, including Section 17 of the ICA and Sections 76.5 and 79.7 of this Manual, apply as written. Where the same event has a deadline both here and in another section, the shorter deadline controls.

**§85.2 Tier 1.**

Within four (4) hours of discovery, with no exception for evenings, weekends, or holidays:

(a) suspected or completed wire fraud;

(b) any data breach or unauthorized access to Company systems, client files, or transaction data;

(c) compromise of any email account, the Associate's or a client's;

(d) suspected seller or party impersonation;

(e) any request or instruction to change wire or payment instructions.

ASSOCIATE INITIALS _____

**§85.3 Tier 2.**

Within twenty four (24) hours of receipt or discovery:

(a) any claim, demand, or threat of legal action;

(b) service of process, subpoena, or discovery request;

(c) any inquiry, complaint, or contact from DBPR, FREC, or any regulatory body;

(d) any MLS inquiry, citation, or fine;

(e) any change to the Associate's license status, including expiration, discipline, or lapse;

(f) any arrest, charge, or conviction reportable under Section 475.25, Florida Statutes.

**§85.4 Method.**

Tier 1 reports must be made by direct telephone contact with the Broker and confirmed in writing. Written notice alone does not satisfy Tier 1. Tier 2 reports may be made in writing.

**§85.5 No After Hours Exception.**

Tier 1 deadlines run continuously. Discovery outside business hours does not extend the deadline.

**ASSOCIATE INITIALS** _____

ASSOCIATE INITIALS _____

## ACKNOWLEDGMENTS

### W-9 Collection & Tax Acknowledgment

This acknowledgment must be completed at onboarding. No commission disbursement will be made to the Associate until a valid IRS Form W-9 is received by Aari Realty LLC.

### W-9 Submission

**§86.1**

The Associate will submit to Aari Realty LLC, before the first commission disbursement, a valid IRS Form W-9 containing their legal name, business name or DBA (if applicable), federal tax classification, Taxpayer Identification Number (TIN) or Social Security Number (SSN), and certification signature.

**§86.2**

The Associate acknowledges that Aari Realty LLC is required by federal law to obtain a completed W-9 prior to issuing any commission payments. Failure to provide a valid W-9 will result in commission withholding until the form is received.

### §86.3 Tax Reporting Acknowledgment

The Associate acknowledges and understands that:

- They are engaged as an independent contractor, not an employee of Aari Realty LLC
- Aari Realty LLC will not withhold federal income tax, Social Security tax, or Medicare tax from commission payments
- Aari Realty LLC will issue a Form 1099-NEC for each calendar year in which federal law requires one for the Associate's commission payments
- The Associate is solely responsible for all federal, state, and local tax obligations, including estimated quarterly tax payments
- The Associate must notify Aari Realty LLC in writing within thirty (30) days of any change to their legal name, TIN, SSN, or tax classification requiring an updated W-9

### §86.4 Backup Withholding

The Associate acknowledges that Aari Realty LLC may be required by the IRS to apply backup withholding if: the Associate fails to provide a TIN; the IRS notifies Aari Realty LLC that the TIN provided is incorrect; or the Associate fails to certify that they are not subject to backup withholding. The Associate certifies that the information provided on their W-9 is accurate and complete.

ASSOCIATE INITIALS _____

## License Verification & Active Status Acknowledgment

This acknowledgment is required before the Associate may conduct any real estate activity under Aari Realty LLC's brokerage license.

### §87.1 License Information

Full Legal Name, Florida License Number, License Type (Sales Associate or Broker Associate), License Status at Onboarding, License Expiration Date, and DBPR Profile Email are collected and verified at onboarding.

### Associate Acknowledgments

**§87.2 Active License Required.**

The Associate must maintain an active, current, and unrestricted Florida real estate license in good standing with DBPR at all times during their affiliation with Aari Realty LLC.

**§87.3 Sole Responsibility.**

The Associate is solely responsible for monitoring their license expiration date, completing all required continuing education, and renewing their license on time. Any verification the Company performs is a supervisory measure only and does not relieve the Associate of this responsibility.

**§87.4 Immediate Notification Required.**

The Associate must notify the Broker in writing within twenty four (24) hours of any change to their license status, including: license expiration or failure to renew; suspension or revocation; voluntary surrender or inactivation; disciplinary action by DBPR or FREC; or any investigation, complaint, or proceeding initiated by DBPR, FREC, MLS, or NAR.

**§87.5 Consequence of Inactive License.**

Any real estate activity conducted under an inactive, suspended, expired, or revoked license constitutes a violation of Florida Statute §475.42 and grounds for immediate termination of the Independent Contractor Agreement and reporting to DBPR. Compensation is not payable on any transaction in which the Associate performed licensed activity while the Associate's license was inactive, suspended, or expired, consistent with Florida Statute §475.42. Commissions earned on transactions in which the Associate performed all licensed activity while properly licensed remain payable and are released when the Associate's license is restored to active status, subject to any offset the Company is otherwise entitled to apply.

**§87.6 Continuing Education and License Renewal.**

The Associate is solely responsible for completing all continuing education requirements mandated by DBPR and for renewing the license on time. The Company does not track continuing education. The Associate must upload current license documentation to the Company's compliance platform within ten (10) business days of each renewal. Any change in license status is reported under Section 87.4.

### §87.7 Broker Verification

Aari Realty LLC verifies through the DBPR online verification system that the Associate's license is active and in good standing before the Associate becomes Active. The Company may verify license status at any time. Ongoing responsibility for maintaining an active license, completing continuing education, renewing on time, and uploading current license documentation to the platform or channel designated by the Broker rests solely with the Associate.

**ASSOCIATE INITIALS** _____

## Affiliated Business Disclosure: RESPA Compliance

This disclosure is given as Company policy and to meet the affiliated business disclosure rules of the Real Estate Settlement Procedures Act (RESPA), 12 U.S.C. §2607(c)(4), as amended, and is acknowledged at onboarding as part of the ICA signing by all Associates affiliated with Aari Realty LLC.

### §88.1 Affiliated Business Relationships

Aari Realty LLC discloses that it has affiliated business relationships with the following entities under common ownership by Marlenyi Paredes:

| Entity | Services Provided | Relationship |
|---|---|---|
| **Aari Transactions LLC** | Transaction coordination, file organization, compliance support | Under common ownership with Aari Realty LLC |
| **Aari Referrals LLC** | Referral only real estate affiliation and referral fee processing | Under common ownership with Aari Realty LLC |

## Associate Obligations

**§88.2 Nature of the Relationship.**

Aari Transactions LLC provides transaction coordination and related services to Associates, not to clients. The Associate is the customer and bears the cost. No client is charged by or required to use any affiliated entity. Aari Referrals LLC receives referrals from licensees outside the Company and may refer clients to the Company, and any referral fee is paid from compensation earned by the Company or the Associate, not charged to any client.

The Associate must have each client sign the Company's written Affiliated Business Disclosure on every transaction, at or before the time the representation agreement is signed, and upload the signed disclosure to the transaction file under Section 50. Where Aari Referrals LLC refers a client to the Company, the disclosure is also given to the client at or before the referral. The disclosure is given as Company policy and, where a client is referred between affiliated entities, to meet RESPA Section 8(c)(4), as amended. No affiliated service is ever a condition of the client's transaction.

**§88.3 No Required Use.**

Clients are under no obligation to use the services of any affiliated entity. Clients may use any qualified service provider of their choice. The Associate shall not represent or imply to any client that use of an affiliated entity is required.

**§88.4 No Additional Compensation.**

The Associate will not receive any referral fee, bonus, or additional compensation from any affiliated entity beyond the compensation structure set forth in Exhibit A: Commission Fee Schedule.

**Legal Reference:** This disclosure is made pursuant to RESPA Section 8(c)(4), 12 U.S.C. §2607(c)(4), and the affiliated business arrangement disclosure requirements of the applicable RESPA implementing regulations as currently in effect. This disclosure does not constitute legal advice. Associates should consult with a licensed attorney regarding their individual compliance obligations.

ASSOCIATE INITIALS _____

## MLS Rules Acknowledgment

This acknowledgment is accepted at onboarding as part of the ICA signing, before the Associate may access or use any MLS system under Aari Realty LLC's membership. The Associate may access an MLS through the Company only where Aari Realty LLC is a participant in that MLS. The Associate's obligations under this Acknowledgment apply equally to all boards through which they conduct business.

## §89.1 MLS Membership Information

Associate Full Legal Name, Primary MLS Board, MLS Member ID (Primary Board), Additional MLS Boards (if any), and Florida License Number are collected and verified at onboarding.

## Associate Acknowledgments

### §89.2 Receipt of MLS Rules.

The Associate has received, reviewed, and agrees to comply with the current rules and regulations of all MLS boards through which they conduct business under Aari Realty LLC's membership, as amended from time to time. Current rules are available through each respective MLS board's member portal.

### §89.3 Multiple Board Compliance.

Where the Associate participates in more than one MLS board, they are responsible for knowing and complying with the specific rules of each board. Rules vary by board. The more restrictive rule applies in all cases of conflict unless the Broker directs otherwise in writing.

### §89.4 Listing Submission, Cooperation & Public Marketing

The Associate must comply with the listing submission, cooperation, and public marketing rules of each MLS in which the Associate participates, as those rules exist at the time of the transaction. The applicable MLS defines what constitutes public marketing, what triggers the submission obligation, and the deadline that applies. Those definitions and deadlines vary by board and are published by each board. The Associate is responsible for knowing and following the current rule of every board in which the Associate participates.

Where a seller directs that a property not be submitted to or publicly marketed through an MLS, the Associate must satisfy that MLS's own requirements for the election before any advertising of the property occurs. Some boards require a signed owner agreement or written notice to be filed with the board itself, and a document held only in the Company's file does not satisfy that requirement. The Associate must complete the board's process and upload proof of the board filing, together with the seller's written instruction, to the compliance platform.

Any change to the listed price or to any other term of the listing agreement requires written seller authorization before the change is made. The Associate must then update the MLS within the deadline set by the applicable board, and must ensure the price published in the MLS matches the price stated in the current listing agreement or modification at all times. Where a modification is intended to take effect on a future date, that effective date must be stated in the modification itself.

**Company file completion (not an MLS deadline):** Listing agreement upload to the Company's compliance platform is governed by Section 65.

### §89.5 Practice Change Compliance.

The Associate must comply with all NAR practice change requirements and all MLS rule changes tied to them, as those requirements and rules exist at the time of the transaction, across every board in which the Associate participates. Those requirements and rules change on the schedule of NAR and each MLS. The Associate is responsible for knowing the current version.

### §89.6 MLS Fines.

Any fine, penalty, or sanction imposed by any MLS board as a result of the Associate's violation of MLS rules is the Associate's sole financial responsibility. Aari Realty LLC reserves the right to offset any MLS fines paid by the brokerage on the Associate's behalf against future commission disbursements. Offsets under this Section are subject to the caps, notice requirements, and release deadlines stated in Section 7, Section 10, and Section 72, as applicable to the underlying obligation.

### §89.7 Broker Notification.

The Associate must notify the Broker within twenty four (24) hours of receiving any MLS inquiry, fine notice, complaint, or disciplinary communication from any MLS board.

ASSOCIATE INITIALS _____

**§89.8 Rule Updates.**

The Associate is responsible for monitoring communications from all MLS boards in which they participate and remaining current on all rule changes. Lack of awareness of a rule change is not a defense to a violation.

### §89.9 Broker Rights

Aari Realty LLC reserves the right to review all MLS activity by affiliated Associates across all boards and to conduct periodic compliance audits. MLS rule violations constitute a nonmaterial breach or, where the violation meets the definition in Section 45 of the Operations and Compliance Manual, a Material Breach, depending on severity and frequency, and may result in suspension or termination of affiliation.

ASSOCIATE INITIALS _____

## Buyer Brokerage Agreement Policy Acknowledgment

This acknowledgment is required in connection with the NAR practice change requirements applicable to buyer representation, and is accepted at onboarding as part of the ICA signing, before the Associate may represent any buyer client.

### §90.1 Background

Under NAR practice change requirements, a written Buyer Brokerage Agreement between the Associate and the buyer client is required before any property is toured. The MLS rules of every board in which the Associate participates incorporate this requirement, and the Broker's supervisory obligations under Florida law apply. The Associate is responsible for knowing the current NAR requirement, the current rule of each applicable board, and the current Florida supervisory rule at the time of the transaction.

### Mandatory Requirements

**§90.2 Written Agreement Before Touring.**

The Associate must obtain a signed, written Buyer Brokerage Agreement with every buyer client before conducting any property showing, tour, or property preview on the buyer's behalf, whether in person, virtually, or by any other means.

**§90.3 Approved Forms Only.**

The Associate must use only Company approved Buyer Brokerage Agreement forms or Florida Realtors/Florida Bar approved forms. The Associate may not draft, create, or modify buyer representation agreements without prior written Broker approval.

**§90.4 Compensation Terms.**

All buyer broker compensation terms must be clearly disclosed in the Buyer Brokerage Agreement. The Associate may not make any verbal representations about compensation that differ from the written agreement.

**§90.5 No MLS Compensation Offers.**

The Associate must not communicate or offer buyer broker compensation through any MLS field or MLS facilitated channel where the applicable NAR requirement or the applicable board's rule prohibits it. Because these requirements and rules vary by board and change on NAR's and each board's schedule, the Associate is responsible for knowing the current rule of every board in which the Associate participates before publishing any listing.

**§90.6 Broker Submission.**

Buyer Brokerage Agreement submission to the compliance platform is governed by Section 50.

**§90.7 Client Disclosure.**

When presenting the Buyer Brokerage Agreement to clients, the Associate must clearly explain: (a) what services are being provided; (b) the compensation structure; (c) the duration of the agreement; and (d) that compensation amounts are negotiable and not set by law.

**§90.8 No Waiver or Circumvention.**

The Associate may not show property to any buyer without a signed agreement, regardless of the buyer's objection, reluctance, or claim that another agent has already shown the property.

### §90.9 Consequences of NonCompliance

Failure to obtain a signed Buyer Brokerage Agreement before showing property constitutes a nonmaterial breach, or a Material Breach where it meets the definition in Section 45 of the Operations and Compliance Manual, and may result in: written warning and mandatory compliance review; commission withholding on the affected transaction; suspension of transaction privileges; termination of affiliation for repeated violations; and reporting to FREC if the violation constitutes a breach of supervisory obligations.

**ASSOCIATE INITIALS** _____

## Wire Fraud & Cybersecurity Acknowledgment

This standalone acknowledgment supplements the wire safety provisions in the Independent Contractor Agreement and creates an independent record of the Associate's awareness of wire fraud risks and protocols. It is acknowledged at onboarding as part of the ICA signing.

## Wire Fraud: Absolute Prohibition

### §91.1 No Transmission of Wire Instructions.

The Associate is strictly prohibited from transmitting, forwarding, drafting, creating, or relaying wire transfer instructions, banking information, or funds transfer details to any party, including clients, buyers, sellers, lenders, or title companies, by any means, including email, text message, social media, or any electronic communication platform.

### §91.2 Verbal Verification Required.

All wire instructions must be verified directly by the client with the receiving title company or escrow agent by telephone, using a phone number independently obtained from a trusted source, not a phone number provided in any email or electronic communication.

### §91.3 No Screenshots or Attachments.

The Associate must never forward, photograph, screenshot, or otherwise transmit images, PDFs, or documents containing wire instructions or banking information.

### §91.4 Client Warning Obligation.

The Associate must proactively warn every buyer and seller client in writing about the risk of wire fraud at or before contract execution. This warning must be documented in the transaction file.

## Cybersecurity Obligations

### §91.5 Email Security.

The Associate must use secure, password protected email accounts for all real estate communications. Shared or unsecured email accounts may not be used for client communications involving financial information.

### §91.6 Suspicious Activity Reporting.

The Associate must report any suspected phishing attempt, email compromise, unauthorized account access, or attempted wire fraud to the Broker in accordance with the reporting deadlines in Section 85 of the Operations and Compliance Manual.

### §91.7 Device and Network Security.

The Associate must not access, transmit, or store client files, transaction documents, or financial information over an unsecured public wireless network. The Associate is responsible for the security of every device used to conduct Company business, including current operating system updates, device passcode or biometric lock, and secure storage of credentials.

## §91.8 Incident Response Protocol

If the Associate suspects that a wire fraud attempt has occurred, is in progress, or has been completed, the Associate must immediately:

- Notify the Broker in accordance with the reporting deadlines in Section 85 of the Operations and Compliance Manual
- Contact the title company or escrow agent immediately
- Preserve all communications, do not delete any emails or messages
- Do not communicate with the suspected fraudulent party
- File a report with the FBI's Internet Crime Complaint Center (IC3) at ic3.gov
- Contact local law enforcement if funds have been transferred
- Make no admission of fault, apology, or statement of liability without prior written authorization from the Broker

## §91.9 Consequences of Violation

Violation of Section 91.1, Section 91.3, Section 91.4, Section 91.6, or Section 91.8 constitutes an immediate termination event under Section 12 of the Independent Contractor Agreement. Violation of any other provision of this Acknowledgment is a compliance matter addressed under Section 8 and the Operations & Compliance Manual, and may result in termination where repeated or willful. The Associate may be held personally liable for all losses, damages, investigation costs, remediation expenses, legal fees, and regulatory fines arising from their violation of these protocols, as set forth in the Indemnification & Defense Addendum.

ASSOCIATE INITIALS _____

### Confirmation of Communication

By signing this Agreement, the Associate agrees that all notices, disclosures, amendments, and communications from the Company may be delivered by email to the email address the Associate provided or by posting in the Company's compliance platform. Notice sent to that email address or posted in the platform is deemed delivered and received when sent or posted, and no reply or acknowledgment by the Associate is required. The phone number on file is for everyday contact only and is not a method of notice under this Agreement. The Associate shall keep this contact information current and notify the Company in writing of any change; until the Company receives that notice, notice sent to the email address on file remains effective.

**ASSOCIATE INITIALS** _____

## EXECUTION

By executing this Agreement, the Associate acknowledges that they have read, understand, and agree to all terms and conditions set forth in this Independent Contractor Agreement and all Incorporated Documents. Electronic signatures shall have the same force and effect as original signatures under Florida's Uniform Electronic Transactions Act (Chapter 668, Florida Statutes).

The Broker's electronic signature is applied on behalf of the Company and takes effect on the date the Associate signs this Agreement.

**ASSOCIATE**

PRINTED NAME

SIGNATURE

DATE

**FOR THE COMPANY: AARI REALTY LLC**

Marlenyi L. Paredes
BROKER OF RECORD, BK3530153

SIGNATURE

DATE

**ASSOCIATE INITIALS** _____